



The Essex Terminal Railway Employee Handbook

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PHONE NUMBERS

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Tony De Thomasis, President & CEO	EXT. 2380
Terry Shields, Vice President	EXT. 2480
Jack Weston, Director of Operations	519-551-9327
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Kelly Woodman, Corporate Human Resource Manager	EXT. 2400
Direct Line	519-946-3664
Dale Lambier, Corporate Health and Safety	EXT. 2420
Cell #	226-280-5958
Drag Cvetkovski, Superintendent	EXT. 2270
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Ryan Jean, Assistant Superintendent	EXT. 2390
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THE ESSEX TERMINAL RAILWAY COMPANY HEALTH AND SAFETY POLICY

The Essex Terminal Railway is committed to safeguarding the health and well-being of our employees, customers and the general public by creating and maintaining a safe working environment. Safety is our top priority and will not be compromised.

ETR and its employees at every level are responsible and accountable for overall safety initiatives. Employees are responsible to perform their duties in accordance with established health and safety policies, procedures, laws and regulations giving consideration for their safety, the safety of co-workers and the safety of our customers. The commitment to a safe workplace will be accomplished through complying with all applicable federal governmental regulations and sound industry safe work practices.

Management is committed to the health and safety of our employees. Our goal is the provision of an accident and industrial disease-free work environment. This shall be accomplished by ensuring that hazards are guarded against or eliminated, safe procedures are established, and policies and rules are developed and maintained.

ETR will provide the training, personal protective devices, appropriate and properly maintained equipment and avenues of communication to ensure a safe, secure workplace.

The personal commitment and active participation of all levels of management, employees, and contractors is required and expected. By fulfilling our safety responsibilities everyone will share the prosperity that a safe workplace brings.

Employees will, as a condition of employment, commit to the principle that:

SAFETY IS EVERYONE'S RESPONSIBILITY



WORKPLACE VIOLENCE, HARASSMENT and DISCRIMINATION POLICY STATEMENT

Essex Terminal Railway is committed to the prevention of workplace violence, harassment (including discrimination and sexual) and, as the Employer, is ultimately responsible for worker health and safety. We will take reasonable steps to protect our workers from violence and workplace harassment of all sources.

Violent behaviour and harassment in the workplace is unacceptable from anyone. This policy applies to all managers, supervisors, workers, contract personnel, contractors, visitors, members of the public on Essex Terminal Railway premises and domestic/intimate partners. Everyone is expected to uphold this policy and to work together to prevent workplace violence and harassment.

The Workplace Violence and Harassment Program is the internal program that implements this policy statement. It includes measures and procedures to reasonably protect workers from workplace violence and harassment, a means of summoning immediate assistance and a process for workers to report incidents.

Essex Terminal Railway, as the Employer, will ensure this policy statement and its supporting program are implemented and maintained and that all workers and supervisors have the appropriate information and instruction to address and respond to incidents of violence and harassment in the workplace.

Supervisors and managers will adhere to this policy and the supporting program. Supervisors and managers are responsible for ensuring the measures, procedures and programs are followed by workers and that workers have the information needed to protect themselves in the workplace.

Every worker must comply with this policy and the supporting program. All workers are encouraged to act upon and raise any concerns about workplace violence and harassment and are required to report any incidents or threats to the Supervisor/Manager, Human Resources, or Joint Health and Safety Representative.

All reported incidents/complaints of workplace violence and harassment will be investigated and addressed in a fair and timely manner, respecting the privacy of all concerned as much as possible.

Both management and workers must be dedicated to the prevention of workplace violence and harassment, with an understanding of shared responsibility to meet current applicable health and safety legislation, standards and regulations.

	No.	ETR- HR - 012
HUMAN RESOURCES POLICY	Effective Date	June 20/2025
Federal Violence and Harassment Program Procedure	Revision	2021.2

1.0 Purpose

This program is in support of ETR's Workplace Violence, Harassment and Discrimination Policy Statement and applies to the Essex Terminal Railway. Essex Terminal Railway, in co-operation with our unions, is committed to a healthy, harassment-free and violence-free environment for all our employees. ETR has developed a company-wide policy intended to:

- prevent and respond to workplace harassment and violence of any type, and
- effectively address any incident that might occur

1.1 Application

This policy applies to all employees, contract personnel, contractors and visitors at Essex Terminal Railway who are engaged in work, work-related activities or work-related relationships. It applies to employees, contract personnel, contractors and visitors both on company property and outside of company property. This policy applies to all incidents of workplace harassment and violence, including sexual harassment and sexual violence, family violence and third-party violence.

2.0 Definition of harassment and violence

The *Canada Labour Code* (the Code) defines harassment and violence at subsection 122(1) as "any action, conduct or comment, including of a sexual nature that can reasonably be expected to cause offence, humiliation or other physical or psychological injury or illness to an employee, including any prescribed action, conduct or comment."

2.1 Harassment

Harassment can include, but is not limited to any of the following acts or attempted acts:

- spreading rumours or gossip about an individual or group
- cyber bullying (threatening, spreading rumours or talking negatively about an individual online)
- threats made over the phone, by email, or through other medium to an employee, including from an (ex)partner or family member
- making offensive jokes or remarks

- playing unwanted practical jokes
- socially excluding or isolating someone
- stalking or inappropriately following a person
- tampering with someone's work equipment or personal belongings
- vandalizing or hiding personal belongings or work equipment
- impeding a person's work in any deliberate way
- persistently criticizing, undermining, belittling, demeaning or ridiculing a person
- intruding on a person's privacy
- public ridicule or discipline
- unwelcomed physical contact
- sexual innuendo or insinuation
- unwanted and inappropriate invitations or requests, including of a sexual nature
- displaying offensive posters, cartoons, images or other visuals
- making aggressive, threatening or rude gestures
- misusing authority, including:
 - constantly changing work guidelines
 - restricting information
 - setting impossible deadlines that lead to failure, and/or
 - blocking applications for leave, training or promoting in an arbitrary manner
- engaging in any of the actions, conduct and comments outlined above against a person because of that persons:
 - race
 - national or ethnic origin
 - colour
 - religion
 - age
 - sex
 - sexual orientation
 - gender identity or expression
 - marital status
 - family status
 - genetic characteristics
 - disability, or
 - any of the other prohibited grounds that the *Canadian Human Rights Act* list

2.2 Harassment is not

Harassment is not any of the following:

- consensual workplace banter and interactions (unless it includes hurtful remarks about others, especially if they pertain to any of the prohibited grounds listed above)
- reasonable management action carried out in a fair way, such as day-to-day actions by a supervisor or manager related to:
 - performance
 - absenteeism
 - assignments
 - discipline, and
 - even dismissal (unless it is abusive or discriminatory)
- every workplace disagreement, if a conflict is poorly handled or left unresolved, it can lead to harassment

2.3 Violence

Violence can include but is not limited to the following acts or attempted acts:

- verbal threats or intimidation
- verbal abuse, including swearing or shouting offensively at a person
- contact of a sexual nature
- kicking, punching, scratching, biting, squeezing, pinching, battering, hitting or wounding a person in any way
- attack with any type of weapon
- spitting at a person

3.0 Responsibilities

3.1 Role of Essex Terminal Railway

The role of Essex Terminal Railway in relation to harassment and violence prevention includes:

- committing to preventing harassment and violence in the workplace
- jointly reviewing and, when necessary, updating this policy with the workplace committee at least once every 3 years or following any change to an element of this policy
- jointly conducting an initial workplace assessment with the workplace committee
- jointly monitoring and, when necessary, updating the workplace assessment with the workplace committee when there is:
 - a change to the risk factors identified, or
 - a change in the effectiveness of the preventive measures that have been developed and implemented

- in situations where the principal party chooses to end the resolution process but the occurrence is not resolved, or
 - in situations where the responding party is not an employee or the employer
- jointly reviewing the workplace assessment with the workplace committee and, when necessary, updating it
- jointly developing emergency procedures with the workplace committee
- deploying the workplace emergency procedures whenever an incident, including an incident of family violence or domestic violence, poses an immediate danger to the health and safety of an employee or there is a threat of such an incident
- jointly reviewing and, when necessary, updating the emergency procedures with the workplace committee
- making available to all employee's information related to support services
- jointly developing or identifying harassment and violence prevention training with the workplace committee
- delivering harassment and violence training to all employees and the designated recipient
- jointly reviewing and, when necessary, updating the training with the workplace committee at least once every 3 years and following any change to an element of the training
- ensuring that the designated recipient correctly follows the resolution process that is outlined in the *Workplace Harassment and Violence Prevention Regulations* (the Regulations)
- for investigations into an occurrence of harassment and violence, providing a final summary of the investigator's report to the principal party, responding party, and workplace committee
- jointly determining with the workplace committee which recommendations from the investigator's report should be implemented
- implementing the jointly determined recommendations from the investigator's summary
- ensuring the resolution process is completed within 1 year after the day on which a notice of an occurrence is received
- reporting to the Labour Program employee deaths resulting from occurrences of harassment and violence, within 24 hours of becoming aware of the death
- providing the Labour Program by March 1st of every year an annual report summarizing the data on all occurrences of harassment and violence in the previous calendar year
- complying with all other aspects of the Regulations and the Code as it relates to harassment and violence

3.2 Role of designated recipient

Under this policy, the HR Manager will act as the designated recipient. The role of the designated recipient in relation to harassment and violence prevention at Essex Terminal Railway includes:

- responding to all notices of an occurrence within 7 days of receiving the notice
- initiating negotiated resolution with the principal party within 45 days after the day on which the notice of an occurrence is received
- reviewing every notice of an occurrence with the principal party against the definition of harassment and violence outlined in subsection 122(1) of the Code
- making every reasonable effort to resolve an occurrence for which a notice has been provided
- allowing the principal and responding parties the option of participating in conciliation if they both agree to participate and on who will facilitate the conciliation
- providing notice of an investigation to the principal and responding parties if the principal party requests an investigation
- in the case of an investigation, selecting a person to act as an investigator from the list of investigators developed jointly by Essex Terminal Railway and the workplace committee
- ensuring selected investigators have the necessary knowledge, training and experience required by the Regulations
- ensuring investigators provide a written statement indicating they are not in a conflict of interest with respect to the occurrence
- providing investigators all the information that is relevant to their investigation
- providing monthly status updates to the principal and responding parties on the status of the resolution process

3.3 Role of the workplace committee

The role of the workplace committee in relation to harassment and violence prevention at Essex Terminal Railway includes:

- jointly reviewing and, when necessary, updating this policy with Essex Terminal Railway at least once every 3 years or following any change to an element of this policy
- jointly conducting the workplace assessment with Essex Terminal Railway and making recommendations to Essex Terminal Railway regarding changes that should be made
- jointly monitoring and, when necessary, updating the workplace assessment with Essex Terminal Railway when there is:
 - a change to the risk factors identified, or

- a change to the effectiveness of the preventive measures that have been developed and implemented
- jointly reviewing and, when necessary, updating with Essex Terminal Railway the workplace assessment every 3 years
- jointly developing the emergency procedures with Essex Terminal Railway
- jointly reviewing and, when necessary, updating the emergency procedures with Essex Terminal Railway
- jointly identifying with Essex Terminal Railway appropriate harassment and violence training
- jointly reviewing and, when necessary, updating the training with Essex Terminal Railway at least once every 3 years and following any change to an element of the training
- jointly developing a list of investigators with Essex Terminal Railway
- where appropriate, checking in with Essex Terminal Railway, if necessary, ensuring continuous compliance with the Regulations and the Code
- implementing the preventive measures developed by the workplace committee at the local workplace level
- jointly reviewing and updating with Essex Terminal Railway the workplace assessment:
 - in situations where the principal party chooses to end the resolution process but the occurrence is not resolved, or
 - in situations where the responding party is not an employee or the employer (for example, clients, contractors, former partners)
- referring the results of the above reviews and updates to the workplace committee where appropriate
- jointly determining with Essex Terminal Railway which of the investigator's recommendations from the investigator's report are appropriate to implement

3.4 Role of employees

The role of all employees in relation to harassment and violence prevention at Essex Terminal Railway include:

- refraining from committing harassment and violence
- where appropriate and safe, informing a person committing harassment and violence that their actions are inappropriate and unwelcomed
- reporting all occurrences of harassment and violence to their supervisor or designated recipient when they experience or witness it
- where appropriate, making every reasonable effort to resolve an occurrence of harassment and violence through negotiated resolution if they were a party to an occurrence

- cooperating with an investigator and the investigation process related to an occurrence
- refraining from retaliatory behaviour against the principal party, responding party, witnesses and any other individuals who are involved in the resolution process for an occurrence
- respecting the confidentiality of the information shared throughout the resolution process of an occurrence

4.0 Factors that contribute to workplace harassment and violence

There are a number of factors that can contribute to workplace harassment and violence. These factors can be divided into 5 general categories:

- client characteristics
- physical work environment
- work activity/culture
- job factors, and
- other external factors

4.1 Client characteristics

Working with clients that exhibit certain characteristics can put employees at greater risk of harassment and violence. This can include working with clients, and their relatives, who may lash out at the closest person due to:

- being angry and frustrated with the system
- having a history of violence
- a mental health condition, emotional disorder, or a head injury
- racist, sexist, homophobic, transphobic, ableist or otherwise discriminatory attitudes and behaviors
- being under the influence of drugs or alcohol

4.2 Physical work environment

Certain work environments may lead to harassment and violence. These can include:

- working alone, in small numbers or in isolated or low-traffic areas (for example, isolated reception area, washrooms, storage areas, utility rooms)
- having a mobile workplace
- working in a poorly designed client area, such as a cramped room or a room that has poor visibility of clients

- working in an overcrowded environment
- working in an environment with high noise levels

4.3 Work activity/culture

- working with the public
- working with volatile persons (for example, criminal justice system employees who work with inmates)
- working in an environment that tolerates or promotes racist, sexist, homophobic, ableist, or otherwise discriminatory attitudes and behaviours
- working during periods of intense organizational change (for example, strikes, privatization, restructuring, downsizing)
- working in the same workplace with an (ex) partner who is abusive

4.4 Job factors

Aspects specific to a job, such as mental and physical demands of the job, can result in additional hazards that may lead to harassment and violence. This can include:

- lack of control over how work is done
- excessive workload
- unreasonable or tight deadlines leading to high stress
- confusing, conflicting or unclear job or roles
- ambiguous or complicated reporting structures
- lack of job security

4.5 Other external factors

Other external factors that can result in harassment and violence include:

- Family violence or domestic violence, such as a family member or (ex) partner:
 - threatening an employee or co-workers either verbally or over the phone or email
 - stalking the employee
 - verbally abusing the employee or co-workers
 - destroying the employee or organization's property
 - physically harming the employee or co-workers
 - using work time or workplace resources to monitor or attempt to control the actions of an (ex) partner

5.0 Harassment and violence prevention training

Essex Terminal Railway will provide all of its employees with a harassment and violence training course. This course will cover:

- elements of the work place harassment and violence prevention policy
- the relationship between workplace harassment and violence and the prohibited grounds of discrimination under the *Canadian Human Rights Act*
- how to recognize, minimize and prevent work place harassment and violence

All new employees will receive training within 3 months after the day on which their employment begins. Further, all employees will receive this training again at least once every 3 years.

The following groups will receive training on their obligations in relation to harassment and violence at least once every 3 years:

- supervisors
- managers
- directors, and
- Designated recipient

6.0 Outline of the resolution process

Below is a summary of the resolution process. It includes how a principal party, or witness, can submit a notice of an occurrence.

6.1 Representation

At any time during the resolution process, an employee may be accompanied or represented by a:

- union representative, or
- a person of their choosing

6.2 Notice of an occurrence

You are encouraged to notify (the designated recipient) if:

- you are an employee who is experiencing or have experienced harassment and violence in the workplace, or
- you are an individual (employees or non-employees) who witnessed an occurrence of harassment and violence in the workplace

Notify the designated recipient by telephone at (519-973-8222 x 2400), or by email at kwoodman@etr.ca

The designated recipient will ask the employee or individual to fill out a form, in which they provide the following information:

- the name of the principal party and the responding party (if known)
- the date of the occurrence
- a detailed description of the occurrence

If an employee or individual is not able to provide this information in written form, they may provide this information to the Designated Recipient verbally. The Designated Recipient will then transcribe the information for them on the form.

Please note that, in order to proceed with the resolution process, it is mandatory to provide the name or identity of the principal party who was involved in the occurrence. If you do not provide the name or identity of the principal party, the occurrence will not be further reviewed.

Essex Terminal Railway cannot reveal the identities of the parties involved in the resolution process for an occurrence to either the workplace committee or union without the consent of the parties. However, the identities of the parties may be revealed to each other as part of the resolution process.

6.3 Negotiated resolution

Negotiated resolution is a form of informal resolution where the principal party meets with the employer or designated recipient to:

- discuss the occurrence
- clarify what was submitted in the notice of occurrence, and
- attempt to reach resolution

During negotiated resolution, the designated recipient will ask the principal party to meet, either in person or by phone, with the designated recipient. This meeting is for an initial discussion regarding the occurrence. During this discussion, the designated recipient and the principal party will review the notice of occurrence that they received against the definition of harassment and violence in the Code. Together, they will try to determine whether the occurrence meets the definition. If both the designated recipient and the principal party agree that the occurrence does not meet the definition, then they will deem the occurrence as resolved. If the designated recipient and the principal party do not agree as to whether the occurrence meets the definition, and the principal party wishes to continue with the resolution process, then the principal party has the option of either:

- continuing with negotiated resolution, or
- pursuing conciliation and/or an investigation

If the principal party wishes to continue with negotiated resolution, they must inform the designated recipient of this decision. The designated recipient will schedule a series of meetings with the principal party. At the meetings, where applicable, the responding party will discuss the occurrence and attempt to achieve resolution. All parties involved must make every reasonable effort to resolve an occurrence for which notice has been provided and those efforts must begin no later than 45 days after the day on which that notice is provided. The responding party does not have to be informed of the principal party's notice of occurrence or be involved at this stage of the resolution process. This is only if the principal party does not wish for them to be notified or involved. The designated recipient can arrange for any of the following meetings:

- meetings with only the principal party
- meetings with the principal party, responding party and the designated recipient
- meetings between the principal party and the designated recipient with concurrent but separate meetings between the responding party and the designated recipient

6.4 Conciliation

A principal party and responding party may engage in conciliation at any time during the resolution process. However, conciliation can only proceed if both the principal party and the responding party agree to engage in conciliation. They must also agree on the person who will facilitate the conciliation. However, conciliation can only proceed if an investigator has not provided their final investigation report.

The principal party and responding party are required to inform the designated recipient of their desire to participate in conciliation. The designated recipient will then facilitate discussion around the selection of a conciliator who is agreeable to both parties. The designated recipient will also schedule time for both parties to meet with the conciliator.

6.5 Investigation

The principal party may request an investigation at any time during the resolution process. If the principal party wishes to proceed with an investigation, they must inform the designated recipient. The designated recipient will then:

- provide notice of an investigation to the principal and responding party, and
- select an investigator from the list of investigators noted in Addendum 1 of this policy who are clearly identified as having received appropriate training as per Section 28 (1) Regulation (SOR/2020-130)

The investigator chosen by the designated recipient shall be agreed upon by the principal and the responding party to ensure no conflict of interest, but if there is no agreement within 60 days after the day on which notice was provided, a person from among those of whom the Canadian Centre for Occupational Health & Safety identifies shall be determined as the investigator.

The selected investigator will investigate the occurrence and provide Essex Terminal Railway a report outlining:

- a general description of the occurrence
- their conclusion, and
- their recommendation to eliminate or minimize the risk of a similar occurrence

Essex Terminal Railway will then provide a copy of this report to the principal party, responding party and the workplace committee.

The report will not reveal, directly or indirectly, the identity of the persons who were involved in the occurrence or the resolution process for the occurrence.

Essex Terminal Railway and the workplace committee will then meet to determine which of the recommendations in the investigator's report are to be implemented. Essex Terminal Railway will implement those recommendations within 1 year of receiving the notice of occurrence.

Essex Terminal Railway may take into consideration the findings in an investigator's report when applying disciplinary measures. However, disciplinary measures will also depend on the findings from a separate administrative investigation that the Essex Terminal Railway will conduct in some circumstances.

Essex Terminal Railway cannot use the findings in an investigator's report for any of the following purposes:

- replenishment of sick leave
- granting of any additional paid or unpaid leave
- monetary remuneration for damages

However, the section Recourse avenues in this policy describes other recourse methods an employee can pursue.

7.0 Protection against reprisal

Parties involved in an occurrence are prohibited from seeking retaliation. If you experience any retaliatory action or threat of retaliatory action from the responding party, witnesses, management, or other people within or outside the organization, please inform the Designated recipient immediately.

8.0 Workplace assessment

The designated recipient and the workplace committee will conduct a joint review. If necessary, they will update the workplace assessment if an employee submits a notice of an occurrence and the resolution process cannot proceed for any of the following reasons:

- the principal party chooses to end the resolution process at any point during the resolution process but the occurrence is not resolved

- the responding party is not an employee or the employer (for example, the responding party is a member of the public, a client, or an (ex)partner or family member)

The purpose of the review and update of the workplace assessment is to:

- determine what happened, taking into account the circumstances of the occurrence
- determine whether all risk factors have been appropriately identified
- develop new preventive measures, if needed, to mitigate the risk of a similar occurrence

9.0 Emergency procedures

If a harassment and violence occurrence poses an **immediate** danger to the health and safety of an employee, or if there is a threat of such an occurrence, notify the Emergency Coordinator, and Senior Management, call 911 for emergency services (police, fire and ambulance).

Below is a summary of the emergency procedures that the Essex Terminal Railway must implement in various types of situations.

9.1 Violence in the workplace

If you witness or experience violence at work:

- remove yourself from the situation if you can
- inform your manager or seek help from a co-worker immediately
- if your manager is the perpetrator, notify the DR (HR Manager)
- if your physical security or well-being is threatened, if possible, call 911

If you are dealing with a violent person:

- stay calm
- try to calm the other person or diffuse the situation (if you can)
- avoid saying or doing anything that could aggravate the situation
- avoid eye contact or sudden movements that can be perceived as threatening
- respect the person's personal space
- continue the conversation with the person only if the person calms down
- tell the person that you understand the reason for their anger
- if the behavior persists, end the conversation
- politely notify the person that you will leave the work area or ask them to do so
- notify your manager or seek help from a co-worker immediately
- if the person refuses to leave the premises and the situation escalates call 911

9.2 Active shooter

If you witness an incident involving an active shooter outside the building:

- stay out of sight (away from windows) and warn colleagues, clients and visitors
- leave the area at risk
- when safe to do so, call 911, and other building occupants
- if you cannot evacuate the building safely, lock outside doors.
- wait for instructions from first responders

If you witness an incident involving an active shooter inside the building:

- stay calm
- if you can do so safely, leave the area immediately
- warn others, as many as possible, without attracting the attention of the assailant
- if you can do so safely, call 911 and notify other building occupants
- lock the doors or barricade yourself in a room using furniture
- block the windows, close the office blinds
- if the workspace has no door, hide under your desk or where you cannot be seen
- if you are in a washroom, remain there, if safe to do so
- silence your cellphone, turn off radios and computers
- if you cannot escape, remain silent and hide until first responders arrive
- wait for instructions from first responders

9.3 Bomb threat

If you are made aware of a bomb threat by telephone:

- listen to the caller calmly and do not interrupt them
- try to get as much information as possible, such as:
 - when the bomb is supposed to explode
 - where the bomb is located
 - description of the device
 - reason for the call or motivation for the threat
 - telephone number on the display screen (if possible)
- remember any details you can about the caller, such as:
 - approximate age
 - gender
 - accent
 - level of nervousness
 - any background noise

- call 911 and inform your manager
- remain available to provide information to first responders

If you are made aware of a bomb threat by e-mail:

- save the email (or letter)
- send it immediately to the Emergency Coordinator and Senior Management
- The Emergency Coordinator in consultation with senior management, shall notify the police and fire departments, and following their advice and direction shall:
- Initiate a search for the devices; or
- Initiate partial or entire facility evacuation.
- If a search uncovers a suspicious package, Do Not touch, notify Emergency Coordinator and senior management

10.0 Privacy protection

Essex Terminal Railway is committed to the protection of the privacy of the persons involved in an occurrence. As such, the workplace committee are not permitted any involvement in the resolution process of an occurrence. Only the Designated recipient will engage in the resolution process with the principal party and responding party. Further, we will not permit an investigator to disclose in any report it produces and distributes the identity of any of the persons involved in an occurrence or the resolution process for an occurrence. This includes the principal party, responding party, witnesses and any other individuals interviewed by the investigator.

11.0 Recourse avenues

Employees can pursue multiple recourse avenues for their occurrence. This includes:

- filing a grievance with the Union
- pursuing recourse under the *Canadian Human Rights Act* with the Canadian Human Rights Commission, or
- pursuing recourse under the *Criminal Code*

12.0 Support measures

Supports and resources related to family violence are available at [Ending Violence Canada - Support Services](#).

13.0 Notices submitted in bad faith

Notices of harassment and violence that are identified throughout the resolution process as having been made in bad faith may be subject to disciplinary action

14.0 Complaints related to employer non-compliance with the Code or Regulations

In accordance with section 127.1 of the Code or Regulations, if you, as an employee believe that there has been a contravention of the Code as it relates to an occurrence of harassment and violence, you may make either a verbal or a written complaint to your supervisor or to Kelly Woodman, Human Resources Manager. Notify Kelly by telephone at (519-973-8222 x2400), or by email at kwoodman@etr.ca

15.0 Definitions

The following definitions apply to this policy:

- **Designated recipient**- The Corporate Health & Safety Specialist in consultation with the Corporate Human Resources Manager are chosen by Essex Terminal Railway, to whom a notice of an occurrence may be submitted.
- **Occurrence** means an occurrence of harassment and violence in the workplace
- **Principal party** means an employee or employer who is the object of an occurrence
- **Responding party** means the person who is alleged to have been responsible for the occurrence in a notice of an occurrence provided to the designated recipient
- **Witness** means a person who witnessed an occurrence of harassment and violence or is informed of an occurrence by the principal party or responding party
- **Workplace** means any place where an employee is engaged in work for the employee's employer as per 122(1) of the Code
- **Negotiated resolution** - Any form of communication between the participating parties to discuss the occurrence and attempt to reach agreement on possible actions to resolve the occurrence.
- **Conciliation** - A discussion or series of discussions that is mediated by The Corporate Health & Safety Specialist, who is a neutral third party will facilitate the discussion(s) and assist the parties involved in reaching resolution. All parties involved in conciliation must mutually agree to participate in conciliation
- **Resolution process** - All the avenues of resolution – negotiated resolution, conciliation and investigation.
- **Emergency Coordinator** - **DAY SHIFT** – SUPERINTENDENT (Assistant Superintendent- If Superintendent not available)
 - **AFTERNOON SHIFT** – TRAINMASTER / YARD COORDINATOR (where applicable if Trainmaster unavailable)
 - **MIDNIGHT SHIFT** (IF APPLICABLE) – SUPERINTENDENT / ASSISTANT
 - SUPERINTENDENT / TRAINMASTER

ADDENDUM 1

The following is the list of internal Investigators for selection:

Kelly Woodman, Corporate Human Resources Manager

Dale Lambier, Corporate Health & Safety Specialist

Jack Weston, Director of Operations

Ryan Jean, Assistant Superintendent

ETR shall select a third-party investigator when required from The Registry of Investigators.

	No.	ETR-H&S-033
HEALTH & SAFETY POLICY	Effective Date	July 7/2025
Internal Responsibility System -Federal	Revision	2025.1

1.0 POLICY STATEMENT

The Internal Responsibility System (IRS) is part of the Canada Labour Code Part II. As this policy pertains to the health & safety of all employees. Very simply put, the IRS is all about teamwork.

Everyone in the workplace has a shared responsibility to make sure that the workplace is healthy and safe for everyone, from senior management to the worker. The IRS will set out the specific duties each role has in ensuring a safe and healthy workplace.

2.0 SCOPE

This policy applies to all employees of The Essex Terminal Railway Company. This includes, Senior Management, Managers and Supervisors and all full and part-time employees.

3.0 ROLES AND RESPONSIBILITIES

EMPLOYER DUTIES

Consult the Workplace committee on the development, implementation and monitoring of a program for the prevention of work place hazards. This program must also provide for the education of employees in health and safety matters.

Consultation must also occur between the employer and the Workplace committee in the development, implementation and monitoring of a program for the provision of personal protective equipment, clothing and devices.

The employer is to consult the Workplace committee to plan the implementation of changes in the work place that may have an effect on the health and safety of employees. Similar consultation is to take place at the Workplace committee level in the development of other health and safety policies and programs.

Work place committees will be consulted in the development, implementation and monitoring of a program for the prevention of unique work place hazards that also provides for the education of employees in health and safety matters.

Work place committees will be consulted in the implementation of the work place changes and the implementation and monitoring of any programs developed through consultation with the workplace committee. Employers are required to cooperate with work place committees.

Specific duties of employer

125 (1) Without restricting the generality of section 124, every employer shall, in respect of every work place controlled by the employer and, in respect of every work activity carried out by an employee in a work place that is not controlled by the employer, to the extent that the employer controls the activity,

- ensure that all permanent and temporary buildings and structures meet the prescribed standards;
- install guards, guard-rails, barricades and fences in accordance with prescribed standards;
- except as provided for in the regulations, investigate, record and report, in accordance with the regulations, all accidents, occurrences of harassment and violence, occupational illnesses and other hazardous occurrences known to the employer;
- provide prescribed first-aid facilities and health services;
- provide prescribed sanitary and personal facilities;
- provide, in accordance with prescribed standards, potable water;
- ensure that the vehicles and mobile equipment used by the employees in the course of their employment meet prescribed standards;
- provide every person granted access to the work place by the employer with prescribed safety materials, equipment, devices and clothing;
- ensure that the levels of ventilation, lighting, temperature, humidity, sound and vibration are in accordance with prescribed standards;
- comply with prescribed standards relating to fire safety and emergency measures;
- ensure, in the prescribed manner, that employees have safe entry to, exit from and occupancy of the work place;
- provide, in the prescribed manner, each employee with the information, instruction, training and supervision necessary to ensure their health and safety at work;

- maintain all installed guards, guard-rails, barricades and fences in accordance with prescribed standards;
- ensure that each employee is made aware of every known or foreseeable health or safety hazard in the area where the employee works;
- ensure that the machinery, equipment and tools used by the employees in the course of their employment meet prescribed health, safety and ergonomic standards and are safe under all conditions of their intended use;
- ensure that the work place, work spaces and procedures meet prescribed ergonomic standards;
- adopt and implement prescribed safety codes and safety standards;
- ensure that every person granted access to the work place by the employer is familiar with and uses in the prescribed circumstances and manner all prescribed safety materials, equipment, devices and clothing;
- ensure that the activities of every person granted access to the work place do not endanger the health and safety of employees;
- ensure that employees who have supervisory or managerial responsibilities are adequately trained in health and safety and are informed of the responsibilities they have under this Part where they act on behalf of their employer;
- ensure that members of work place committees receive the prescribed training in health and safety and are informed of their responsibilities under this Part;
- develop, implement and monitor, in consultation with the work place committee, a prescribed program for the prevention of hazards in the work place appropriate to its size and the nature of the hazards in it that also provides for the education of employees in health and safety matters;
- where the program referred to in paragraph (z.03) does not cover certain hazards unique to a work place, develop, implement and monitor, in consultation with the work place committee, a prescribed program for the prevention of those hazards that also provides for the education of employees in health and safety matters related to those hazards;
- consult the work place committee to plan the implementation of changes that might affect occupational health and safety, including work processes and procedures;
- consult the work place committee in the implementation of changes that might affect occupational health and safety, including work processes and procedures;
- ensure the availability in the work place of premises, equipment and personnel necessary for the operation of the policy and work place committees;
- cooperate with the work place committees in the execution of their duties under this Part;

- develop health and safety policies and programs in consultation with the work place committee;
- respond in writing to recommendations made by the work place committees within thirty days after receiving them, indicating what, if any, action will be taken and when it will be taken;
- provide to the work place committee, a copy of any report on hazards in the work place, including an assessment of those hazards;
- ensure that the work place committee inspects each month all or part of the work place, so that every part of the work place is inspected at least once each year;
- when necessary, develop, implement and monitor a program for the provision of personal protective equipment, clothing, devices or materials, in consultation, except in emergencies, with the work place committee;
- take all reasonable care to ensure that all of the persons granted access to the work place, other than the employer's employees, are informed of every known or foreseeable health or safety hazard to which they are likely to be exposed in the work place;
- meet with the health and safety representative as necessary to address health and safety matters;

take the prescribed measures to prevent and protect against harassment and violence in the work place, respond to occurrences of harassment and violence in the work place and offer support to employees affected by harassment and violence in the work place;

- ensure that employees, including those who have supervisory or managerial responsibilities, receive training in the prevention of harassment and violence in the work place and are informed of their rights and obligations under this Part in relation to harassment and violence;
- undergo training in the prevention of harassment and violence in the work place;
- ensure that the person designated by the employer to receive complaints relating to occurrences of harassment and violence has knowledge, training and experience in issues relating to harassment and violence and has knowledge of relevant legislation;
- post and keep posted, in a conspicuous place or places where they are likely to come to the attention of employees, the names, work place telephone numbers and work locations of all of the members of work place committees;
- provide, within thirty days after receiving a request, or as soon as possible after that, the information requested from the employer by a work place committee under subsection 135(8) or (9); and

- consult with the work place committee on the implementation and monitoring of programs.

EMPLOYEE DUTIES

Employees have a responsibility to take all reasonable and necessary precautions to ensure their health and safety and that of anyone else who may be affected by their work or activities. Specifically, the Code requires employees to:

- use all safety materials, equipment, devices and clothing that are provided by the employer and are intended to protect the employees;
- follow procedures that relate to the health and safety of employees;
- follow all instructions provided by the employer concerning the health and safety of employees;
- cooperate with any person carrying out a duty or function required by the Code;
- cooperate with work place committees;
- report to the employer anything or circumstance that is likely to be hazardous to the employees or any other person in the work place;
- report to the employer, all work related accidents, occupational diseases or other hazardous occurrences that have caused injury to the employee or any other person;
- report to the employer, any situation the employee believes to be a contravention of Part II of the Code, by the employer, another employee or any other person;
- comply with every oral direction or written direction given by a health and safety officer or an appeals officer;
- respond in writing to a health and safety officer's direction or report when requested to do so by the health and safety officer.

Nobody knows a work place better than the people who work in it. Part II of the *Canada Labour Code* gives the work place parties a strong role in the identification and resolution of health and safety concerns.

BASIC RIGHTS TO EVERY WORKER

The right to know

Through the provisions of the Code, employees have the right to be informed of known or foreseeable hazards in the work place and to be provided with the information, instruction, training and supervision necessary to protect their health and safety.

This right to know is strengthened by ensuring that the methods of communication are appropriate for all employees, including employees with special needs.

Through their health and safety committees or representatives, employees are given the right to have access to government or employer reports relating to the health and safety of employees, but do not have access to medical records of any person except with that person's consent.

The right to participate

As health and safety representatives or committee members, employees have the right and the responsibility to participate in identifying and correcting job-related health and safety concerns.

Employers who employ 300 or more employees are required to establish a policy health and safety committee. The purpose of the policy committee is to handle issues that are organization-wide in nature. Because these types of issues go beyond a single work place, there is a need for a more strategic or global approach for their resolution.

Part II of the *Canada Labour Code* further provides for employee participation through the use of an internal complaint resolution process.

The right to refuse dangerous work

An employee, at work, has the right to refuse dangerous work if he or she has reasonable cause to believe that:

- a condition exists at work that presents a danger to himself or herself;
- the use or operation of a machine or thing presents a danger to the employee or a co-worker; and
- the performance of an activity constitutes a danger to the employee or to another employee.

In order for an employee to be protected by the Code when exercising the right to refuse, the employee must follow the proper procedure.

WORKPLACE COMMITTEE

A Workplace Committee, as defined under the Canada Labour Code (CLC), is a group established in federally regulated workplaces to address health and safety matters. These committees play a crucial role in promoting a safe and healthy work environment by addressing complaints, participating in hazard prevention programs, and conducting inspections

EXTERNAL PARTIES

Parties and organizations external to the workplace also contribute to workplace health and safety. These include the Labour Program's Health and Safety Officers, the

Workplace Safety and Insurance Board (WSIB), and the health and safety system partners. These external parties work alongside internal workplace parties (employers and employees) to ensure a safe and healthy working environment

4.0 Responsibility

As the employer of The Essex Terminal Railway, we hold the responsibility of ensuring everything reasonable is done in the prevention of injury. We as a company will ensure our managers and supervisors are handling health and safety issues in our workplaces as expected, and are committed to building a strong safety system that will ensure any and all health and safety related concerns are addressed and resolved internally.

It is the expectations of the Company that employees address their concerns with their supervisors first, along with the assistance of the Workplace committee; and follow the hierarchy of authority to resolve all health and safety related matters, prior to contacting and using external parties in attempt to resolve health and safety deviations.

5.0 Review

This Policy will be reviewed on an annual basis.

THE ESSEX TERMINAL RAILWAY COMPANY

WORK REFUSAL POLICY

An employee who believes on reasonable grounds that there is likely to be an accident or injury to health arising out of, linked with, or occurring in the course of employment shall, make a complaint to the employee's supervisor.

The employee and supervisor shall try to resolve the complaint between themselves as soon as possible.

If a resolution cannot be reached between the employee and supervisor, a Health and Safety representative and a Company official will jointly investigate the complaint.

If the work refusal continues after a joint investigation, a Health and Safety Officer will be called to investigate the complaint.

On the completion of the investigation, the Health and Safety Officer may,

- (a) Issue directions to the employer or employee under section 45 (1) of the Canada Labour Code.
- (b) Recommend that the employee and employer resolve the matter between themselves or,
- (c) If the officer concludes that a danger exists as described in subsection 128 (1), issue directions under subsection 145 (2) of the Canada Labour Code.

An employee may not, refuse to use, or operate a machine or thing, to work in a place, or to perform an activity if,

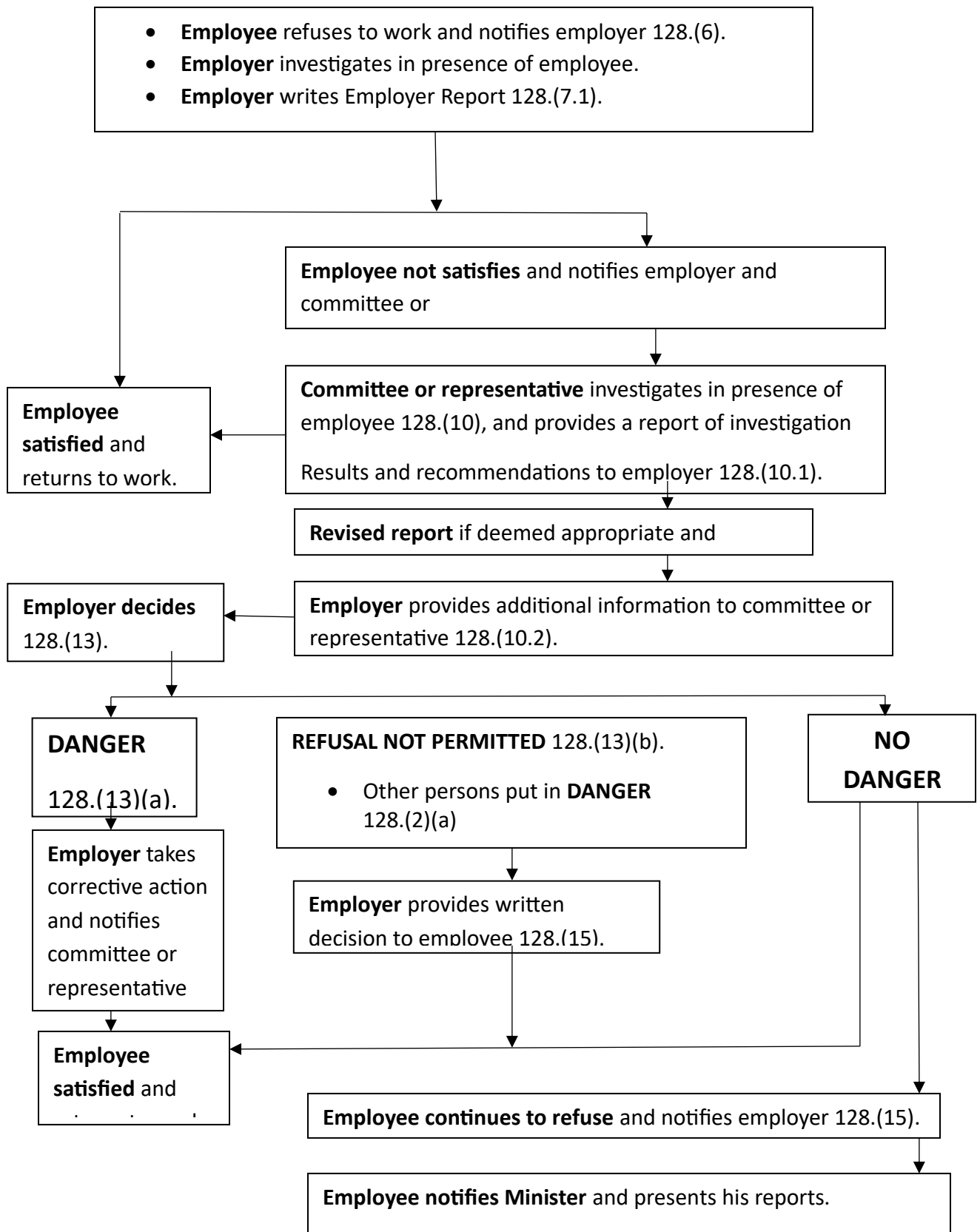
- (a) The refusal puts the life or safety of another person directly in danger or,
- (b) The danger is a normal condition of employment.

An employee, who refuses to use or operate a machine or thing, work in a place, or to perform an activity, shall remain on the premises and report all pertinent circumstances of the matter to the employer without delay.

If the employer agrees that a danger exists, the employer shall take immediate action to protect employees from danger. The employer shall inform the Health and Safety Committee of the matter and the action taken to resolve it.

THE ESSEX TERMINAL RAILWAY COMPANY

INTERNAL COMPLAINT RESOLUTION PROCESS



	No.	H&S - 12
	Effective Date	November 25, 2021
	Revision	2022.2

FATIGUE MANAGEMENT PLAN POLICY

1. INTRODUCTION

This Fatigue Management Plan (the ‘Plan’) has been developed pursuant to the requirements of Part D of the “Duty and Rest Period Rules” (the ‘Rules’) by the ETR Fatigue Management Working Group (‘FMWG’). The FMWG includes designated representatives for the Teamsters Canada Rail Conference – Train and Engine (the ‘TCRC’). As a shared responsibility between ETR and TCRC, the FMWG will monitor the Plan, make recommendations and changes to the Plan in the future. This includes additional modifications to the Plan and supporting processes that will need to be done to address phased in requirements of the Rules as they come into effect.

The Plan is designed with the intent that the principles of fatigue science will be applied to the scheduling process for operating employees and to mitigate risk associated with fatigue. It also outlines the goals of the Plan, roles and responsibilities and its application.

1.1. PURPOSE AND SCOPE

The purpose of this Plan is to provide a framework for a Fatigue Management Program (the ‘Program’) to manage risks related to fatigue at ETR. The Plan provides the approach that will be used to identify, assess, and manage risk related to fatigue for ETR employees who are involved in performing “operating” responsibilities (an ‘operating employee’). As defined in the Rules and used in this document.

- Employee means “locomotive engineer, conductor, trainman, yardman, pilot, operator of remote-control locomotives and operator of light rail passenger equipment or any person whose preponderance of time is spent in such classifications, who is physically involved in the operation of switching of trains, engines and equipment as well as any other persons who perform such duties.”; and
- Operating means “being in control of or engaged in the operation of railway equipment or switching of trades, transfers, engines, or equipment and does not include time spent on railway equipment where the employee is not required to attend the equipment in accordance with the Canadian Railway Operating Rules.”:

The Program includes all policies and procedures and processes related to fatigue risk management. In addition to the foregoing, any person who performs the duties of an operating employee is deemed to be an operating employee while they are performing those duties. This includes Yard Coordinators and ETR Management.

1.2. OPERATIONS/TERRITORY DESCRIPTION

The Essex Terminal Railway (ETR) is a switching (or short line) railway that runs from the east side of Windsor, ON through the Town of LaSalle, ON and Amherstburg, ON. The mainline of the ETR runs in

a generally southwest direction for 19 miles in a route that roughly parallels the Detroit River that separates Windsor, ON from Detroit, Michigan.

The ETR provides switching services for local customers engaged in the industrial, lumber, steel, agricultural, scrap metal, alcohol, and liquid petroleum gas (LPG) industry sectors. While ETR does not run any trains, a total of up to 3 roustabout crews may be working simultaneously per day. ETR interchanges with 3 class 1 railroads (CN, CP, CSXT) in Windsor, ON. ETR's track is not shared with any other railways. Deadheading and associated activities such as management of activities relative to deadheading are not relevant for the Essex Terminal Railway as all staff members begin and end all shifts at the same location due to the total length of track being 19 miles. Away from home accommodations are not necessary for employees of the ETR.

Characteristics of the territory

Because ETR is a short line railway that operates locally, the territory is contained within Windsor, ON, LaSalle, ON, and Amherstburg, ON. The ETR provides switching services for pick-up and delivery of railcars between facilities and interchange locations at which point a connection to another rail carrier is provided. Given the geographical areas of Canada, some areas may be exposed to unpredictable weather, and may submit workers to days which can have extended or short exposure to daylight. Working in differing weather and light conditions may have an impact on fatigue levels.

Traffic Density



1.3. OBJECTIVES

ETR will see objectives for fatigue management related policies, procedures, and processes as they are developed. In general, the objectives of all the Program's policies, procedures and processes are to:

- Prevent, mitigate and manage risks associated with fatigue;
- Maintain or improve operational task performance and safety;
- Promote and increase awareness of the impact of fatigue and alertness strategies;
- Enable assessment for levels of fatigue that may affect safe railway operations and/or deem an employee as not fit for duty;

- Allow for the effective implementation of fatigue countermeasures; and,
- Identify roles and responsibilities

Specific objectives will be set by a Fatigue Management Working Group in consultation with the TCRC Union. Guidelines on fatigue risk management will be referenced in the process of setting the objectives for alignment with industry best practices and standards.

The Program will be reviewed at least annually by ETR's Fatigue Management Working Group to monitor how effectively it is achieving its objectives. The objectives may be revised by the Fatigue Management Working Group in consultation with the TCRC.

1.4. DIFFERENCES IN REQUIREMENTS

Operating employees have many opportunities to rest under the Duty and Rest Period Rules and TCRC/ETR Collective Bargaining Agreements (CBAs), as amended from time to time. This includes employees operating in assigned and unassigned service. As Operating employees have access to copies of the Rules and CBAs, the opportunities for rest offered by those documents, which contribute, to Fatigue Management have been deemed outside the scope of this document. In the event of a potential conflict, regulations; rules, CBAs and company policies and procedures will supersede the content of this document.

2. FATIGUE MANAGEMENT POLICY STATEMENT

ETR will enable employees to perform their duties as safely and effectively as possible by mitigating risks associated with fatigue. To this end, ETR is committed to developing and maintaining a Fatigue Management Program. The objective of the Fatigue Management Program is to prevent, mitigate and manage the risks related to fatigue during ETR operations, and to promote health and wellbeing for employees, and for the provision of quality services.

1. DEFINITIONS

Where applicable, terms in the document have the same meaning as defined in the Rules.

2. FATIGUE MANAGEMENT ROLES AND RESPONSIBILITIES

Managing fatigue involves shared responsibility between ETR and its employees. Duties and responsibilities of personnel who have a role in managing fatigue are described in this section.

4.1. ACCOUNTABLE EXECUTIVE

- Is the executive designated under section 8(1) of the Safety Management System 2015 Regulations.
- Accountable for ensuring the Program is developed and implemented in accordance with the Plan.

4.2. FATIGUE MANAGEMENT WORKING GROUP (FMWG)

- Membership will include representatives from, at a minimum, management, and the relevant bargaining agent. Representatives to be included:
 - Health and Safety Supervisor
 - Joint Health & Safety Committee Union Representative

- ETR Assistant Superintendent
- Responsible for providing input on the development, monitoring, and modification/update of the Plan and Program. Accountable for ensuring the Plan is developed;
- Responsible for:
 - The development and modification of the Plan
 - The development/monitoring/and modification of the Program
 - The review/audit of the Program
 - The verification of compliance with the Rules
- The ETR Assistant Superintendent will chair/lead the Fatigue Management Working Group (FMWG). The ETR Assistant Superintendent is also responsible for conducting risk assessments relating to fatigue.

4.3. ETR MANAGEMENT

- Responsible for working with the FMWG, as needed, to:
 - Provide interpretation on relevant regulatory requirements
 - Engage with the designated representatives of the TCRC to share and collect input
 - Submit notification to the Minister of Transportation of any material revisions to ETR's Plan, no later than 30 days following the visit
 - Engage with Transport Canada
- Health and Safety Supervisor is responsible for assisting in the development of fatigue training. Managers/Supervisors of Operations are responsible for developing and delivering fatigue training.

4.4. MANAGERS/SUPERVISORS OF OPERATIONS

- Responsible to read, understand, and comply with the Plan and Program to manage fatigue as described in the procedures, policies, and processes:
 - Safety Management Systems (e.g., Procedure – Methods for applying fatigue science principles to scheduling).
 - Scheduling;
 - Training;
 - Risk Assessment/Evaluations;
 - Recording Duty Period Time;
 - Emergency Situations;
 - Call-out Processes; and
 - Accident and Incident Investigations
- Accountable for managing the scheduling of Operating Employees
- Responsible:
 - For recording duty period time data
 - To record, monitor, and ensure compliance with the Rules:
 - Maximum Duty Period, Emergency Situations
 - Minimum Rest Period
 - Maximum Cumulative Duty Period Time
 - Maximum Time Free from Work

- Provide input on the development, monitoring, and modification/update of the FMP and Program.
- Responsible to ensure employees are fit for duty prior to shift, during shift and as circumstances change throughout their tour of duty.
 - Review employee fatigue management pre-shift self-assessment
 - Review employee fatigue management during shift evaluation
 - Ensure employees are using mitigating strategies if they have a change in category during any self-assessment
 - Replace or relieve any employee who reports not fit for duty
- The ETR Assistant Superintendent and or Trainmaster are responsible for delivering fatigue training.

4.5. OPERATING EMPLOYEES

- Employees are responsible for:
 - Being fit for duty;
 - Making effective use of rest periods and breaks in order to obtain adequate rest;
 - Reporting to Supervisor, before or during a duty period where they are fatigued or not fit for duty;
 - Reporting to Supervisor, any situation that may present a fatigue-related risk that may affect safe railway operations.
 - Fill out the Fatigue Management Pre-Shift Self-Assessment, hand it into your immediate supervisor for review and report immediately if you're not fit for duty;
 - Fill out the Fatigue Management During Shift Evaluation if an employee believes they are fatigued in a manner that may affect safe railway operation or if an employee believes they are not fit for duty any time after beginning a duty period. Hand it in to your immediate supervisor for review and record;
 - Fill out the Fatigue Management During Shift Evaluation if an employee's duty period is scheduled to last more than 10 hours and end between 0001 and 0600. Hand it into your immediate supervisor for review and record;
 - Reporting all duty period time;
 - Not accepting an assigned duty period that does not comply with the requirements of these Rules;
 - Immediately notify the Managers/Supervisors of Operations if they become aware that the assigned duty period would result in the maximum duty period or maximum cumulative duty period time being exceeded;
 - Completing all training provided by the railway company and applying the principles;
 - Complying with the Plan, the Program, and all related policies, processes and procedures and the Rule.

5. METRICS AND TARGETS

Metrics and targets for each of the objectives will be identified by the Fatigue Management Working Group. Guidelines on fatigue risk management will be referenced in the process of setting the metrics and targets for alignment with industry best practices and standards. The program will be

reviewed annually by ETR's Fatigue Management Working Group (FMWG) to monitor how effectively it is achieving its targets and objectives. Performance against the targets and objectives will be evaluated by the FMWG in consultation with the ETR Superintendent and H&S representatives meeting on an annual basis to discuss any events, near misses, and fatigue reports in order to determine if the objectives, targets to meet the objectives, and ways to measure achievement need to be modified for the coming year. The targets and objectives may be revised by the Fatigue Management Working Group.

The targets and objectives will be shared through refresher training.

6. REVIEWING AND UPDATING THE PLAN

The long-term success of the Plan depends upon ongoing monitoring and evaluation. Appropriate measurements and metrics will be identified to facilitate the evaluation of the Plan against the targets and objectives. The FMWG will meet annually, or as regulations change, to review the development, implementation and ongoing effectiveness of the Plan and Program or as needed to address significant issues.

The Fatigue Management Plan will be reviewed annually to determine how effectively it is functioning and achieving its objectives. The annual review will be conducted by ETR's Fatigue Management Working Group. Strengths, opportunities for improvement, and issues of significance, will be identified in the annual evaluation. ETR employees will assess their fatigue using a tool based on the 9-point Karolinska Sleepiness Scale which is based on fatigue science and industry guidance to track and trend continuous improvement. Any number of fatigue reports and reports of fatigue related unfit for duty occurrences will trigger an update to the plan. In addition, any operational or design changes will trigger an update to the plan. Corrective action to update and/or revise the Plan or Program will be developed and tracked by the FMWG. Issues of significance resulting from the evaluation of the effectiveness of the FMP will be recorded in writing by the FMWG and addressed with the collaboration of ETR's joint health and safety committee. Updates to the FMP due to cause will be investigated promptly by the FMWG, and revisions will be tracked on the document itself and reviewed with staff members through monthly footboard meetings, and upon orientation of new hires. The FMP is updated due to cause as a result of any near miss relating to fatigue, or any scheduled changes that may affect the plan.

The Plan, Program and resource materials will be made available to employees via the ETR Health & Safety Board, the ETR Employee Handbook, and training.

7. TRACKING AND RECORDING DUTY PERIOD HOURS

Duty hours will be tracked against the limits in the Duty and Rest Period rules by ETR Assistant Superintendent or Trainmaster and tracked using a shared Microsoft Excel spreadsheet as well as company electronic payroll software. The tracking and recording duty period hours procedure will be adjusted to include details regarding:

- Duty Period hours needed to account for the following activities:
 - Operating
 - Administration duties
 - Waiting for re-crews or transportation
 - Training, and

- Meetings
- Total time spent in accordance with any period or activity.

8. MANAGING EMERGENCY SITUATIONS

ETR recognizes the importance of managing fatigue and maintaining fitness for duty during emergencies, service interruptions and other unusual operating conditions.

As defined in the Rules, an “emergency situation means a sudden or unforeseen situation where injury or harm has been sustained, or could reasonably be sustained to employee(s), passenger(s), the public or the environment such as those involving a casualty or unavoidable accident, an Act of God, severe storms, major earthquakes, washouts, derailments or where there has been a delay resulting from a cause not known to the railway company at the time employees leave the terminal and which could not have been foreseen.”

ETR will manage fatigue in emergencies that require an employee to exceed the maximum duty period of 12 hours by providing adequate coverage from employees on the spare board during the emergency. Employees from the spare board will be scheduled in accordance with the collective agreement. Subsequent rest periods will be adjusted after extended duty hours due to an emergency by providing adequate relief from spare board employees and management as necessary and in accordance with section 7.8 of the Duty and Rest Period Rules for Railway Operating Employees. Any employee who has been affected by extended duty hours will have subsequent minimum rest periods extended by the amount of time in which the employee’s shift was extended by the emergency. In the case of an emergency, the following mitigation measures will be used if a duty period needs to be extended:

- Ensure that only safety essential services are performed until a relief crew arrives on-site
- Ensure a supervisor is always on-site monitoring the safety of workers

All reports relating to emergency events will be recorded and retained for a minimum of 2 years.

9. FATIGUE REPORTING

ETR employees are required to report their fitness for duty, which can include personal fatigue, potential fatigue in others, fatigue hazards, and fatigue-related events. Employees will perform fitness for duty self-assessments prior to any duty period and during any duty period if required, by using the Karolinska Sleepiness Scale (KSS) once employees have been trained through footboard meetings on what the KSS is, how to use the KSS to properly perform a self-assessment as well as how and who to report their findings to.

9.1 REPORTING POLICY

ETR employees who report timely, safety-related information such as operational/human errors, hazards, observed unsafe acts or conditions or contraventions with legislation, regulations, standards, or laws will not be subject to disciplinary action, retaliation, or adverse consequences by ETR. This extends to employees reporting unfit for duty, fatigue related issues or risk factors for themselves or other employees.

9.2 REPORTING SYSTEMS

ETR employees are required to report when they feel unfit for duty such as excessively tired and request relief from duties if necessary.

Prior to a duty period, employees must fill out a Fatigue Management Pre-Shift Self-Assessment form and report concerns related to fitness for duty to the Manager/Supervisor of Operations. In the event of an employee or employees reporting unfit for duty after performing a self-assessment using the KSS, a relief employee or relief crew from the spare board will be called in their place. Employees shall be entitled to a two (2) hour call, and their guarantee shall not be reduced, if less than a two (2) hour call is afforded. Conductors/Brakepersons called will make every attempt to report for duty as soon as practicable to cover unknown vacancies in order to reduce crew downtime. Because ETR operates locally within the Windsor-Essex County region and only has 19 miles of track, remote locations are not a barrier for a replacement employee providing relief to the employee or employees who report unfit for duty. All ETR employees, including relief employees, start and end their shifts at the same location.

While on duty, if an employee believes they are fatigued in a manner that may affect safe railway operation or if an employee believes they are not fit for duty any time after beginning a duty period, ETR employees must fill out a Fatigue Management During Shift Evaluation form. Employees must report any concerns or incidents related to fitness for duty to their Manager/Supervisor of Operations. If the employee has changed categories since their pre-shift assessment, they must ensure to select at least one mitigating strategy that they will implement for the remainder of their duty period.

Recording of all instances of unfit for duty will be recorded in company time and attendance management system as well as the shared spreadsheet.

10. CALLOUTS AND UNDISTURBED REST

Call Outs and Undisturbed Rest procedures adhered to by the Manager/Supervisor of Operations with ETR will ensure a minimum of 8 hours which employees are assigned to rest and will be undisturbed by ETR. In the event of an employee or employees being called out, the Manager/Supervisor of Operations will first ensure that the employee has rested for a minimum of 8 hours prior to contacting them. Changes to call out times or methods are not applicable to the ETR, as there are no circumstances where the 8 hours of rest will be disturbed.

11. SCHEDULING EMPLOYEES

ETR ensures adequate opportunity is provided for rest including a minimum of 8 hours of undisturbed rest. The procedure for scheduling employees will be well defined, with specific details on:

- Bulletins to provide advance notice of a schedule for assigned employees are provided every 6 months;
- Access to real-time information regarding employees' hours of duty periods and rest periods provided to all employees in a shared document which is managed and maintained by the Manager/Supervisor of Operations with ETR;

- For any changes to operational needs, employees will receive 3 days advance notice and 12 hours in unforeseen changes to start times in jobs;
- Managing significant changes to the schedule, including how employees will be notified will be determined by spare board and call-in procedures by the Manager/Supervisor of Operations.

12. INVESTIGATIONS

All accident and incident occurrences determined to be of high risk or where there is an expectation that further study will be able to improve safety performance, will be investigated by collaborating with ETR management, the joint health and safety committee, and the employee or employees involved in the accident or incident in order to determine if fatigue has been a potential contributing factor. Investigations will include the collection of:

- When the duty period started
- Hours into the duty period when the event occurred
- How many hours the employee had been awake
- Hours of duty and rest for employees in the previous 24 hours and the past 7 days

The results of the investigations will be analyzed by comparing them against industry standards, as well as applicable company policies and procedures. Based on the findings of the investigation, ETR will develop and implement corrective measures appropriate to the accident or incident by reviewing the details of the case and determining appropriate next steps as well as any relevant training required as determined by ETR Manager/Supervisor of Operations. ETR will measure the effectiveness of the corrective actions by analyzing the results of any recurring incidents or accidents recorded on the incident/accident investigation form. Results of the incidents and accidents will be communicated to employees and management through bulletins, footboard meetings, and safety bulletins.

13. FATIGUE MANAGEMENT TRAINING

ETR will provide both initial group training and refresher training for managing and mitigating fatigue to all employees, additional training through footboard meetings and scheduled training throughout employees shifts. The refresher training will be delivered annually and will also be included in the employee handbook for all new hires starting with ETR. This training includes an evaluation of the extent to which participants developed the required competencies, and will include the following topics:

- Causes and risks of fatigue
- Symptoms
- Fatigue management and alertness strategies
- Fitness for Duty self-assessments using the Karolinska Sleepiness Scale, and the employee's prior work/sleep information
- Mitigation of fatigue

ETR will make the FMP available to all employees by posting a copy of the most recently revised version on the health and safety board in the yard office, as well as including a copy in the ETR employee handbook.

	No.	HR-009
HUMAN RESOURCES POLICY	Effective Date	March 30, 2023
Communication Device Policy	Revision	2023.2

Communication Device Policy

Intent

This policy is to advise of the company's expectations in regard to any and all communication devices on company, or customer properties whether the device is company issued or is a personal device of an employee. A communication device includes, but is not limited to, cellular phones, smartphones, iPods, iPads, gaming devices, or any other form of electronic device. Inappropriate use of communication devices at work can contribute to serious injuries and cause distraction that may interfere with the ability to work safely and may infringe on company and customer confidentiality. Headphones and wireless earpieces may interfere with the proper use of personal protective equipment and cause a distraction to employees hearing directions given by their supervisors and may also restrict their attention to possible hazards in the workplace and will not be permitted.

Guidelines

All employees must be professional and conscientious at all times when using company issued phones. Company cell phones should be limited to use for work-related business and should not be used for everyday personal reasons.

All other personal use of communication devices is prohibited in the workplace except for while on breaks and lunches.

Responsibility

- Employees are not permitted to use Company or personal communication devices while driving at any time.

- It is against the law to use communication devices while driving. The Company will not pay for infractions incurred while disobeying Company policy or the law.
- In an emergency, employees are expected to safely pull over to the side of the road, in a safe location, free and clear from impeding traffic, before responding to or making phone calls, sending text messages, emails and voicemail messages. Employees may not resume driving until all communication devices are put away.
- Employees must be aware that:
 - Taking any kind of photographs in the workplace is strictly prohibited without the permission or advisement of the company.
 - Recording video or audio conversations on any communication device is also prohibited unless advised by company officials.
 - Any use of communication devices during working hours that has not been authorized by the company is prohibited.
 - Any social media posts that depict company property or makes mention of the company in any negative manner is strictly prohibited.
- During working hours, employees should have their devices turned off, and be stored in lunch bags or lockers, and may not have it out or on them unless there is an emergency or due to radio failure. In cases of emergency, employees should get permission from their supervisors to keep their device on them while working, as long as it does not distract the employee from completing their job duties, and it is only used to address the emergency.
- Employees are expected to focus on work and may not use any communication device in the workplace for the following:
 1. Engaging in personal conversations
 2. Playing games
 3. Surfing the internet
 4. Checking email, and
 5. Sending or receiving text messages
- Employees may use communication devices while on breaks and lunches only.
- Employees who violate this policy will be subject to disciplinary actions, up to and including termination of employment.

Driving

Essex Terminal Railway has a zero-tolerance policy regarding using a cell phone without a hands-free device while driving. For the safety of our employees and others, it is imperative that you pull over and stop at a safe location to dial, receive, or converse on a cell phone if a hands-free device is not available.

Employees are never to use a hand-held device while:

- Fueling any vehicle or equipment
- Operating trains, machinery or any other type of vehicle or equipment

Again, the company will not be liable for any infractions an employee may receive as a result of prosecution due to engaging in this illegal behaviour.

Termination of Employment

If the employment relationship is terminated, regardless of reason, any company-issued communication devices must be returned to the company by the employee's last day of work. If the cell phone is not returned by the employee's last day of work, the company may recoup the cost of the phone through deduction on the employee's final payroll or may seek the assistance of law enforcement in order to recover any stolen property, if applicable.

The Company reserves the right to amend or alter the terms of this policy should it become necessary, at any time.



PUBLIC TRESPASSING POLICY

PURPOSE

Safety at the Essex Terminal Railway is important to all of us. Keeping our workplace safe and secure requires the active efforts of us all. Preventing unauthorized access to ETR facilities, rights-of-way and other property can reduce the opportunity for criminals to commit their crimes. Trespassing on railway property is dangerous to the trespasser as well as the employee and is strictly prohibited.

RESPONSIBILITY

Employees who witness trespassers or suspicious activities **should:**

- Advise a Supervisor or another employee that a trespasser was observed, your location, and continue to observe the trespasser from a safe distance to determine if it is safe to approach.
- Never approach a trespasser alone, have another employee accompany you, and carry a cell phone or radio to call for help, if required.
- If you have determined that it is safe to approach, do so politely and ask the trespasser to leave the property for their safety. Never attempt to physically remove a trespasser or make physical contact.
- If the trespasser is a young child (less than 12 years of age) do not leave the site without ensuring the child's safety. If the child is un-cooperative, call non-emergency number (519-258-6111) and request police assistance to remove the child.
- Always use caution, courtesy, and common sense when dealing with trespassers. You must consider your own personal safety.

If there is an immediate threat to the employee's safety due to acts or threats of violence, report the incident immediately to the local Police through the use of the 911 system.

Supervisors **should NOT:**

- Approach a group of trespassers or a suspicious vehicle, instead, notify Police at non-emergency phone number (519-258-6111) and continue to monitor (if possible) gathering as much information as possible such as, license plate number, color and type of vehicle, description of trespasser(s) etc.
- Approach a person that appears aggressive, abusive, or acting in an unusual manner.
- Approach a trespasser in an isolated location, or any situation that puts you or others in danger.
- Argue, challenge or threaten trespassers.
- Attempt to physically remove or make physical contact with a trespasser.

 	No.	H&S-010
HEALTH & SAFETY POLICY	Effective Date	August 26, 2022
Sharps Disposal Safety Procedure	Revision	2022.1

Sharps Disposal Safety Procedure

Scope

Essex Terminal Railway recognizes the safety and protection of employees as one of our guiding principles and a key component of sound business performance. It is important that we all work to the same safety standards, and that we help each other achieve and maintain these standards by planning safety considerations into all of our work activities. It has been brought to the company's attention that there has been occasions that Terminals are locating disposed of needles (sharps) in and around Company properties. This policy directs our teams on how to safely address these instances.

Purpose

To protect employees and others from blood borne infectious diseases by reducing the risk of sharps injuries, such as needle sticks, cuts, and scratches, through safe work practices and the use of safety-engineered protective equipment when disposing of sharps found around the properties of ETR.

Policy

Employees who find needles, syringes, or other medical related sharps on the work premises should not attempt to handle these items at all and must report it to their supervisor immediately upon locating.

The supervisor will then be required to safely dispose of the sharp waste, treating all needles and other sharps devices as biohazardous waste and contaminated.

Supervisors must ensure they use extreme caution when disposing of such devices, using the provided personal protective equipment (PPE), and following the below steps in order to safely dispose of needles found in the workplace:

1. Put on gloves (latex, vinyl, and/or cut resistant) to protect yourself from fluid contamination.
2. Using tongs or a grabber, pick up needle by the middle of the plastic tube (syringe) with the sharp end facing down. Do not try to recap the needle or break the tip off.
3. If there are multiple needles, pick them up one at a time.
4. Place the needle-sharp end first into a puncture proof, sharps container. Keep the container closed tightly.
5. Return the sharps container to the proper storage location.
6. Remove gloves and wash hands with warm soap and water or use hand sanitizer.
7. Terminal Managers will be responsible for the disposal of sharps containers when they reach the fill line indicated. Sharps disposal bins are located throughout the City of Windsor or at your local pharmacy. Do not overfill containers for any reason.

Employees and supervisors must not:

1. Throw loose sharps in the garbage.
2. Put sharps in the recycling bin.
3. Flush sharps down the toilet.
4. Throw sharps in bushes, parks, or streets.
5. Never reach into sharps containers.

Responsibilities

Employees will be responsible for immediately reporting any sharps found in and around ETR properties to their supervisors, for the protection of all employees. Employees are not to attempt to handle or dispose of sharps at any time.

Supervisors are responsible for the safe and proper disposal of sharps that are found or reported on company property, using proper PPE provided.

Terminal Managers are responsible for the proper disposal of all sharp containers once they reach the indicated fill line.

All employees are responsible to report any noted problems or concerns associated with the sharps container immediately.

All sharps injuries must be reported immediately to your supervisor and will be recorded on an incident report with immediate medical attention being provided by an appropriate medical professional.

Please see below for sharps disposal information from the Windsor Essex County Health Unit and list below for sharps disposal locations in Windsor:

You can drop off your used sharps at any 24-hour sharps disposal bins located outdoors at:

- Street Health Windsor Essex Community Health Centre, 711 Pelissier St.
- Parking Lot Windsor-Essex County Health Unit, 962 Pelissier St.
- Parking Lot Windsor-Essex County Health Unit, 972 Goyeau St.
- AIDS Committee of Windsor 511 Pelissier St.
- Bruce Park - east side of park facing Church Street
- Wigle Park - west side of park near McDougall
- Glengarry/Marentette Neighbourhood - interior courtyard
- Senator Croll Park - close to Ontario Tourist Information Centre - west side facing Goyeau
- Downtown Transit Terminal - facing Chatham Street
- Ford City Parkette - corner of Whelpton and Drouillard
- Dufferin Place - Behind Windsor Fire Headquarters

	No.	H&S - 001
HEALTH & SAFETY POLICY	Effective Date	December 19, 2019
Substance Policy	Revision	2019.1

1.0 Purpose

The Essex Terminal Railway, including its associated companies, (herein “ETR”) is committed to the health and safety of its employees, the public and the environment.

As part of this commitment, ETR, its employees and unions, share a responsibility to maintain a safe workplace, free from the negative effects of alcohol and other drugs. As such, ETR has zero tolerance for impairment in the workplace.

Management, unions and employees should be concerned with alcohol and other drug use because it can affect the health, safety, performance and conduct of employees on the job, and impose hardships on the employer, employee, co-workers and family and the community at large. This policy is an important component of ETR’s program to minimize risk in all operations and provides a framework for education, assistance, rehabilitation and reintegration of employees who have problems with substance abuse.

2.0 Scope

This policy applies to all full-time and part-time employees and contractors of the ETR. Those employees in safety sensitive positions are held to a higher standard and are subject to more serious consequences because of the direct impact that their positions have on safety.

3.0 Policy

3.01

All employees are required to report and remain fit for duty, free of the negative effects of alcohol, cannabis and other drugs which may impair their ability to safely perform the essential duties of their job. It is strictly prohibited to be on duty or to be in control of an ETR vehicle or equipment while under the influence of alcohol or other drugs, including the after-effects of such use. Specifically, the use, consumption, possession, distribution or sale of illegal drugs, cannabis or alcohol while on duty (including during breaks), on or off company premises, in company vehicles and equipment, or while on company business, is strictly prohibited.

- 3.02 Employees are expected to use over-the-counter, prescription or medically-authorized drugs responsibly. All employees, in particular those in safety-sensitive positions or who can be in control of ETR vehicles or equipment, are responsible for investigating whether

the medication may cause impairment. Employees must check with their own physician or pharmacist regarding the use of opiates, medically authorized cannabis, or any other impairing medications, and report any concerns to your Supervisor and abide by their recommendations to ensure safety.

- 3.03 Employees who work or transfer into safety-sensitive or safety-critical positions are required to undergo pre-placement and/or periodic medical assessments that evaluate the impact, if any, of medical conditions on fitness for work. As part of these assessments, health conditions such as substance use disorders and/or the use of impairing medication can be identified, assessed and monitored, through the medical assessment and biological testing (including drug testing). Where an employee in a safety sensitive or safety critical position is diagnosed as having a substance use disorder, medical monitoring, including drug and alcohol testing, may be required to ensure ongoing fitness for duty in this position.

- 3.04 Employees who work in safety sensitive positions may be subject to biological testing for the presence of drugs in urine and oral fluids or a breathalyser where reasonable cause exists to suspect alcohol or drug use or possession in violation of this policy, including after any significant accident or incident where an experienced operating officer, upon consideration of the circumstances, determines that the cause may involve a violation of a C.R.O.R. rule or company policy and/or impaired judgement by the employee. In cases of reasonable cause or post-accident testing, any employee whose breath alcohol concentration is over 0.04, and/or who tests positive for legal or illegal drugs (without medical justification) in oral fluids, and/or where impairment is demonstrated, will be considered to be in violation of this policy.

Employees may be monitored on the compliance of this policy, including testing for drugs and alcohol, as part of their employment contract. This would be established as a condition of continuing employment or reinstatement after dismissal.

- 3.06 Employees who operate vehicles (whether company or customer) on public roadways must possess the applicable provincial driver's license with a clear driver's abstract. Employees are strictly prohibited from operating any ETR or customer vehicle and equipment while impaired.

Employees who require a valid driver's license in the performance of their duties or who operate railway equipment and whose driving privileges are lost or suspended due to impaired driving while not on duty, nor in an ETR vehicle, nor on ETR premises, must immediately report such loss to their supervisor. A medical assessment will then determine whether the employee suffers from a substance use disorder.

- 3.07 Employees found on company premises or in customer or ETR vehicles or equipment to be possessing, distributing and/or selling substances, whether legal or illegal, which have the potential to cause impairment will be terminated with cause. Employees may be subject to contact from local authorities pertaining to violation incidents that transpire in the workplace.

- 3.08 Violation of this policy by any employee will result in discipline up to and including termination of employment. Violation by contractors will be considered a breach of their

contract and will be dealt with accordingly. Refusal without cause to complete the testing process set out under this policy is considered a policy violation.

- 3.09 ETR reserves the right to conduct unannounced searches for alcohol or drugs where there are reasonable grounds to believe they are present on premises, in vehicles and/or equipment owned, leased, or otherwise controlled by ETR, in contravention of this policy.
- 3.10 Where applicable, this policy supplements, but does not modify the Canadian Rail Operating Rules (C.R.O.R) Rule G. Nothing in this policy reduces the requirements of Rule G.

4.0 Responsibility

- 4.01 Employees are responsible for arriving to work fit and free from impairment. If an employee witnesses another employee who may be impaired, they should report it to their Supervisor immediately, consistent with their shared obligations as set out at Article 1 above to ensure a safe workplace.
- 4.02 Employees are to notify their Supervisor if they are prescribed a medication that may cause impairment. Human Resources will provide the necessary functional abilities form and job description to the Employee to give to the medical practitioner for completion. The employee's medical practitioner is expected to respond within a reasonable timeframe in order to ensure appropriate accommodation may be reviewed and discussed with the employee.

In situations where an employee has demonstrated a need for an accommodation, the employee and his or her immediate Supervisor, with Human Resources support, are responsible for working together in order to find a reasonable accommodation and developing an accommodation plan, where necessary, in accordance with the Company's Accident Investigation Procedures and applicable Human Rights and Occupational Health and Safety legislation.

- 4.03 Supervisors will be trained as to their responsibilities in administering this policy and are responsible for delegating work assignments to their employees. If there is reason to believe that an employee may be suffering from an impairment the Supervisor should notify their Manager immediately. A confidential conversation should take place with the employee with Human Resources present.
- 4.03 The President, Vice Presidents, Human Resources and Department Managers are jointly responsible to develop and implement information, education, testing and follow-up required under this policy.

5.0 Review

- 5.01 This Policy will be reviewed on an annual basis.



Terminal Expectations

This list of terminal expectations is designed to provide clarity of responsibilities for all team members at Essex Terminal Railway.

1. All team members shall inspect and clean their work area/equipment/vehicle prior to end of their regular shift.
2. No visiting, loitering, or sleeping during work hours.
3. No leaving work during working hours without permission of your supervisor and/or failure to punch out prior to leaving the premises.
4. Smoking is strictly prohibited in the buildings or work vehicles. Smoking is permitted only in designated area.
5. All team members shall report any hazards to their manager/supervisor.
6. Posting, distributing or removal of notices, signs or writing in any form on any bulletin boards or company property without permission from management is prohibited.
7. All team members are expected to turn in any work-related reports, inspections as required.
8. All team members shall comply with all communicated Health and Safety policies and procedures.
9. All team members shall operate all work vehicles/equipment in a safe manner at all times.
10. No use of ear buds or headphones where such use could cause distractions or be considered as a safety hazard.
11. Use of personal cell phones is prohibited during work time.
12. Cameras and digital recording devices are always prohibited in the workplace.
13. Fighting or horseplay on the premises is not permitted. Throwing things or any actions, which may cause distraction resulting in injury to an employee.
14. Neglect, mishandling or deliberate destruction of machinery, equipment, or any Company property. You must notify your supervisor of any damaged equipment.
15. Failure to immediately report an accident, incident, near miss or injury to Supervisor.
16. Removal of any material or property from premises without receiving proper authorization.
17. Unauthorized use of Company telephone for personal business and/or long-distance calls.
18. Unauthorized use of Company computers or any electronic devices for personal use.
19. Possession of or being under the influence of alcohol on Company premises at any time. Possession of or being under the influence of any illegal or non-medically prescribed drugs/narcotics on Company premises or property, including the selling of any drug or narcotic, legal or illegal, prescribed or not to any person on company premises or property including the parking areas is prohibited.
20. Falsifying or permitting falsification of information to the WSIB claims, medical forms, illnesses, or absences, short disability claims, etc.
21. Immoral conduct or indecency on Company property.
22. Possession or use of weapons on Company property.
23. Setting off fire alarm system or causing false fire alarms or tampering with protection equipment.
24. Threatening, intimidating, harassing, bullying, or coercing fellow employees at any time for any purpose.
25. All vehicles (personal/company) must be backed into parking spots where applicable. Driving away from a parked position must always be a forward movement.

Non-compliance of these expectations will result in appropriate disciplinary action, up to and including termination. Management will determine the level of discipline after review of the circumstances of the incident, prior disciplinary record, and other relevant factors. The Company reserves sole and exclusive right to amend these expectations from time to time.



SMOKE AND VAPE FREE WORKPLACE POLICY

PURPOSE

The Essex Terminal Railway is committed to providing a healthy, comfortable and productive work environment for our employees and everyone visiting our premises.

In order to eliminate hazards and ensure a safe, healthy workplace we have established designated smoking/vaping areas. All employees must be aware of all acceptable designated areas.



RESPONSIBILITY

All forms of tobacco use including the use of electronic nicotine delivery systems – known as vapes or e-cigarettes, will be strictly prohibited within company buildings.

All company vehicles, locomotives and equipment will be designated smoke/vape-free, including rental vehicles or equipment used for company business.

The success of this policy will depend on the thoughtfulness, consideration and cooperation of smokers and non-smokers. All of us share in the responsibility for adhering to and enforcing this policy.

Conforming to this policy will make our company compliant with provincial legislation, The Smoke-free Ontario Act.

Copies of this policy will be made available to all employees. Signs will be posted at all building entrances. Failure to adhere to this policy will result in disciplinary action up to and including termination of employment.

HEALTH AND SAFETY POLICIES AND PROCEDURES

	No.	ETR - H&S - 013
HEALTH & SAFETY PROCEDURE	Effective Date	April 25,2025
ETR Emergency Plan Procedure (Railway)	Revision	2025.3

POLICY STATEMENT

It is the policy of Essex Terminal Railway to ensure and require, that a plan and procedures are developed, implemented, and maintained to effectively deal with Emergency situations that may occur at the workplace. These measures are developed to carry out the overall objectives of the Emergency Plan, in order of priority:

- *To reduce the risk of death or injury resulting from emergency situations.
- *To provide for the safety, care, and comfort of personnel.
- *To reduce and minimize damage to property, equipment, and inventory.
- *To accelerate the resumption of normal operations.

1.0 Scope:

ETR's emergency plan procedure applies to all employees, contractors, vendors, contract workers, customers and visitors.

These measures apply to, but are not limited to:

- a) Serious Workplace Accident, Illness, Rescues and Entrapment.
- b) Explosions
- c) Bomb Threats
- d) Major Storms/Severe Weather
- e) Fire
- f) Natural Gas Leak
- g) Chemical Spill
- h) Power Failure
- i) Crime Prevention
- j) Workplace Violence
- k) Water Supply Interruption
- l) Propane Emergencies

2.0 Responsibilities:

EMERGENCY COORDINATOR - The overall responsibility and authority to administer the Emergency Plan is the responsibility of the **EMERGENCY COORDINATOR**. **The responsibilities of the EMERGENCY COORDINATOR will be as follows:**

DAY SHIFT – SUPERINTENDENT (Assistant Superintendent- If Superintendent not available)

AFTERNOON SHIFT – TRAINMASTER / YARD COORDINATOR (where applicable if Trainmaster unavailable)

MIDNIGHT SHIFT (IF APPLICABLE) – SUPERINTENDENT / ASSISTANT SUPERINTENDENT / TRAINMASTER

EMERGENCY COORDINATOR RESPONSIBILITIES

It is the responsibility of the **EMERGENCY COORDINATOR** (or designate), and that person has the authority to:

- Communicate with and notify the appropriate outside agencies to deal with and respond to emergency situations (e.g., fire and police departments., ambulance, etc.)
- Assess the situation to determine whether it is necessary to activate emergency procedures, including site wide or partial evacuations.
- Designate team members and assign responsibility for emergency operations in given areas.
- Notify senior management (Director of Operations/VP/President) and keep them informed of the status of the emergency. During afternoon or midnight shift operations, the Emergency Coordinator, where practical, will ensure prompt notification is communicated to the off-site (Superintendent).

SUPERINTENDENT, ASSISTANT SUPERINTENDENT, TRAINMASTER

It is the responsibility of these Managers/Supervisors:

- To ensure each worker under their supervision is familiar with the Emergency Plan and its required actions.
- To ensure each worker under their supervision is instructed as to the location of emergency exits, evacuation routes and evacuation assembly area.
- To account for each worker under their supervision and report this information to the Emergency Coordinator if an evacuation is required.

WORKERS

It is the responsibility of each Worker:

- To report to their immediate Supervisor, or any available Manager/Supervisor, the conditions or circumstances that exist or may lead to the existence of emergency situations.
- If designated, trained in the use and application of first aid, C.P.R., artificial respiration or fire-fighting techniques, to respond to and provide assistance in emergency situations under the direction of the Emergency Coordinator (or designate).
- Where applicable, to evacuate the site/building by the closest and safest exit in an orderly fashion upon direction of a Supervisor or hearing the designated emergency signal.
- To report directly to the appropriate evacuation assembly area following evacuation. This will ensure that employees can be efficiently accounted for.
- To remain at the predetermined evacuation assembly area until further instructions are given to them by their Supervisors/Managers

CONTRACTORS, VENDORS, CONTRACT WORKERS, CUSTOMERS, VISITORS

- Any visitor to any location, whether contractor, vendor, contract worker, consultant or customer will be advised of emergency

evacuation plan by the company representative they are visiting. Accounting for visitors in an emergency will be the responsibility of the company representative they are visiting.

3.0 Definitions:

EVACUATION ASSEMBLY AREA: The evacuation assembly area is the external area that personnel will report to upon being directed to evacuate part or all of the site or buildings.

ETR RAILWAY: All employees must report to the evacuation assembly area, located approx. 200' north-east of the Engine house in the cut out.



ALARM NOTIFICATION SIGNAL FOR EMERGENCIES:



ETR: All staff shall be informed of the Fire alarm button on the keypads located by all main doors. This will activate the audible sound on site and security one will receive notification of this alarm. Employees will also be advised verbally by members of supervision (or designates) either directly or by handheld radios (where available).

MAPS/FLOOR PLANS: Maps and floor plans are posted and available to illustrate the TERMINAL LAYOUT and identifying:

- * Emergency Exits
- * Evacuation Assembly Area
- * Inclement Weather Assembly Area
- * Fire Extinguishers
- * First-Aid Stations/Rooms

TRAINING & INSTRUCTION: All employees shall be trained in the provisions of this plan. All training shall be documented.

4.0 Procedure:

4.1 SERIOUS ACCIDENT / ILLNESS / RESCUE & ENTRAPMENT

1. The **first person on the scene** must assess the situation, determine if additional assistance is required, and where appropriate, initiate First-Aid or C.P.R. (if trained and authorized).
2. Under no circumstances should equipment, materials, etc. be moved or operated until the injured person is stabilized or unless it is necessary to prevent further injury.
3. A member of **Supervisory/Management Staff** must be notified as soon as is practicable and will coordinate as the **Emergency Coordinator** at the scene.
4. External required emergency services (ambulance, fire department, police, etc.) shall be notified immediately following assessment of the status of the injured person and situation. This is the responsibility of the **on-site Supervisor/ Emergency Coordinator** in consultation with the first aid / C.P.R. attendant.
5. If the Accident/Incident involves machinery or equipment Entanglement/Entrapment; on site staff with appropriate expertise shall be made available without delay. This is the responsibility of the **on-site Supervisor/Emergency Coordinator**.
6. The **Supervisor/ Emergency Coordinator** will appoint two (2) persons to direct external emergency services into the facility or appropriate area.
7. **Human Resources/Superintendent** will notify the injured person's next of kin **only after**:

STATUS OF THE SITUATION IS KNOWN and, the injured person's condition is known and stable, or the injured person is in the care and custody of emergency services **and in transit to a medical facility**.

4.2 EXPLOSION

1. Upon witnessing an explosion or the potential of an explosion an employee shall notify the Supervisor immediately.
2. Upon notification of an explosion or its potential, the **Supervisor will**
 - a) Remove local personnel from danger area
 - b) Notify appropriate personnel
3. The situation will be immediately assessed, and if required, activate the evacuation signal, and designate an individual to contact the appropriate Emergency Service (Fire, Police, Ambulance) if necessary.

4.3 BOMB THREATS

1. When a telephone threat is received, listen carefully, and obtain as much information as possible. Note the time. Information should be documented, if possible, during the telephone call. Ask the following questions:
 - Where is the bomb, is there more than one?
 - What time will it explode?
 - What does it look like?
 - Why and how did you place the bomb?
 - Who are you?
 - When did you place the bomb?
2. Attempt to keep the caller on the telephone and note the phone number indicated on the call display if applicable.

3. As time permits, notification should be made to the **Emergency Coordinator**, during or immediately following the call.
4. The Emergency Coordinator shall immediately be made aware of the situation and notify senior management.
5. The Emergency Coordinator, in consultation with senior management, shall notify the police and fire departments, and following their advice and direction shall:
6. initiate partial or entire facility evacuation.

4.4 MAJOR STORMS/SEVERE WEATHER

The most common impacts from storms and severe weather (i.e., heavy snow, tornadoes, thunderstorms) are as follows:

- power failure.
- damage to structures, roofing, and unsecured materials.
- injury from blowing debris; and
- vehicle accidents.

The Emergency Coordinator shall ensure that:

1. Nonessential outdoor activities are discontinued as per any internal procedures at each terminal. Ensure contact with any employee working outside or off-site and have all employees report to the designated inclement weather assembly area immediately, if safe to do so and time permits.
2. Offsite employees may not be able to return, so Supervisors should try to confirm the location of all workers.
3. Secure loose materials outdoors, and building openings (doors, vents, windows, etc.) as appropriate.
4. In the event of water leakage or damage, electrical power should be disconnected, where appropriate.

In the **event of a tornado warning or an actual sighting**, the employee seeing or hearing of a tornado in the area will:

1. Notify the Supervisor.
2. Upon notification the **Supervisor/ Emergency Coordinator** should advise a member of senior management if time permits.
3. The situation shall be quickly assessed, and notification sounded for the employees to gather at the designated inclement weather assembly area location at each facility.
4. Ideal **designated locations** should be: In any **lower-level interior room, without windows**. Cemented walled areas most preferred. Please ensure all employees are made aware of each Terminal's meeting area.

ETR RAILWAY: All employees on site must report to the Engine House first aid room.

Once the employees are in their designated locations, everyone should get as close to the ground as they can and stay as far away from windows as possible. Always protect your head by covering it or going under large, heavy pieces of furniture.

The **Supervisors** present should ensure that all employees remain in these locations until the

danger has passed. After the danger has passed the employees must be advised to return to their work areas if applicable.

4.5 FIRE

1. Upon discovering a fire an employee shall notify his/her Supervisor.
2. Upon notification of a fire the **Supervisor** will:
3. Immediately proceed to the location of the fire and take charge. He/she shall determine the course of action to be taken by assessing the situation in the following sequence:
4. Remove local personnel from danger areas and assess whether an evacuation of the area or building is required.
5. Attempt to extinguish the fire **if trained and confident to perform**.
6. Determine whether the Fire Department should be called.
7. Have a person in the area notify the Site Manager or the Emergency Coordinator.
8. If a full evacuation is required, one (1) individual shall be designated to activate the evacuation notification. See Evacuation procedure below for details. The Emergency Coordinator (or designate) will ensure the SDS book is obtained to give to the Fire Department.
9. If the Fire Department is required, the **Supervisor or a designated person** shall call the Fire Department and then send a guide to the facility entrance.
10. Each Supervisor shall endeavor to control the fire with the use of the proper equipment if safe to do so, until the arrival of the Fire Department. They will give the Fire Department as much assistance as required without endangering their own life or the life of any other company personnel at the scene.
11. All precautions should be taken to minimize the danger to any ETR employee.

4.6 NATURAL GAS LEAK

1. Upon discovery of a gas leak or damaged equipment that could cause a gas to leak an employee shall notify a Supervisor.
2. The **Supervisor** shall contact the Gas Company (listed with Emergency Phone List) and proceed with the instructions given.
3. If a full evacuation is required, the normal procedure will be followed.

4.7 OIL/COOLANT & CHEMICAL SPILL RESPONSE

1. On the discovery of a spill, employees shall immediately notify a supervisor.
2. Upon notification of a spill the **Supervisor** will immediately proceed to the location of the spill and take charge. He/she shall determine the course of action to be taken by assessing the situation in the following sequence:
3. Remove local personnel from danger area and assess whether an evacuation of the area or building is required.
4. Immediately contain the spill utilizing the Spill Response Kit.
5. Arrange to have an Environmental Service Provider safely cleanup and transport the spill (if required) as outlined below.
 - Oil/Coolant Spills of LESS THAN 100L should be contained and cleaned up internally. The use of absorbable socks and pads should be used to cleanup spills.
 - Spills of MORE THAN 100L should be contained and cleaned up by an Environmental Service Provider.
 - Spills of Hazardous Chemicals should be contained and cleaned up by an Environmental Service Provider.

Spills that can cause, or are likely to cause the following, must be reported immediately to the Spills Action Centre of the Ministry of Environment and the City of Windsor (See Emergency Telephone List):

- Impairment to the quality of the natural environment – air, water, or land.
- Injury or damage to property or animal life.
- Adverse health effects to any person
- Making property, facilities, or animal life unfit for use.

If a full evacuation is required, one (1) individual shall be designated to activate the evacuation notification system. See Evacuation procedure for details.

An investigation/response report will be completed for all reportable spills at any facility or property.

4.8 POWER FAILURE

1. In the event of a power failure, employees are to remain at their current location until receiving further instructions from a supervisor.
2. The **Emergency Coordinator** will determine the source of the power failure and estimated length. In the event of an estimated power blackout spanning different shifts, the Emergency Coordinator will arrange to contact the employees being affected.

4.9 CRIME PREVENTION/ ACTIVE SHOOTER

If you witness an incident involving an active shooter outside the building:

- Stay out of sight (away from windows) and warn colleagues, clients, and visitors.
- Leave the area at risk.
- When safe to do so, call 911, and other building occupants.
- If you cannot evacuate the building safely, lock outside doors and close the blinds and curtains.
- Wait for instructions from first responders.

If you witness an incident involving an active shooter inside the building:

- Stay calm.
- If you can do so safely, leave the area immediately.
- Warn others, as many as possible, without attracting the attention of the assailant
- If you can do so safely, call 911 and notify other building occupants.
- Lock the doors or barricade yourself in a room using furniture.
- Block the windows, close the office blinds and curtains.
- If the workplace has no door, hide under your desk or where you cannot be seen.
- If you are in a washroom, remain there, if safe to do so.
- Silence your cellphone, turn off radios and computers.
- If you cannot escape, remain silent and hide until the first responders arrive.
- Wait for instructions from first responders.

4.10 WORKPLACE VIOLENCE

If you witness or experience violence at work:

- Remove yourself from the situation if you can.
- Inform your manager or seek help from a co-worker immediately.
- If your manager is the perpetrator, notify another manager in the line

of authority.

- If your physical security or well-being is threatened contact your Supervisor, or contact yard office (railway) immediately for assistance

If you are dealing with a violent person:

- Stay calm.
- Try to calm the other person or diffuse the situation (if you can).
- Avoid saying or doing anything that could aggravate the situation.
- Avoid eye contact or sudden movements that can be perceived as threatening.
- Respect the person's personal space.
- Continue the conversation with the person only if the person calms down.
- Tell the person that you understand the reason for their anger.
- If the behavior persists, end the conversation.
- Politely notify the person that you will leave the work area or ask them to do so.
- Notify your supervisor or seek help from a co-worker or anyone in the direct area immediately.

4.11 WATER SUPPLY INTERRUPTION

1. If the water supply is interrupted, the **Emergency Coordinator** will contact the water supplier (See Emergency Phone List) to determine the anticipated length of the interruption.
2. For short periods of interruption, arrangements should be made to ensure that hand sanitizer and bottled water for manual flushing of toilets is available in the washrooms.
3. If the interruption is anticipated to be longer than 8 hours, arrangements should be made to have portable toilets delivered to the facility.

4.12 PROPANE EMERGENCIES:

1. In the event of fire, use water to cool exposed cylinders or tanks, if safe to do so.
2. Immediately clear the area.
3. Depending on the situation (determined by Management) call the propane supplier for assistance or, where warranted, call 911.
4. If necessary, have a qualified technician inspect or address any possible leaks.

5.0 Safety Information:

EVACUATION PROCEDURE

All Personnel

1. The designated employee on duty at the ETR Rail Office will initiate their alarm signal on the key pads.
2. Upon hearing the evacuation signal, shut down any equipment under your control and exit the building/area in an orderly fashion and meet at your

facility's **Evacuation Assembly Area.**

3. Report to your Supervisor upon arriving at the evacuation assembly area.
4. Do not leave the evacuation assembly area until directed by your supervisor.
5. Do not re-enter the building until instructed by your supervisor.
6. Supervisors will ensure that their work areas are evacuated of workers and visitors, and that all employees, visitors or contractors are accounted for by performing a roll call.

Supervisors, Managers, Emergency Coordinators

1. Ensure that all employees and visitors have left their work area.
2. Ensure the fire alarm button on the security keypad in the office (if safe to do so), is pushed to automatically alert our security Company who will also alert proper authorities.
3. Telephone 911 operator and give details regarding the emergency and ask for the proper authorities.
4. Account for all employees and visitors (headcount) at the evacuation assembly area. Ensure you have an up-to-date daily shift list to account for everyone. Know if there are visitors or contractors on site that need to be accounted for.
5. Do not allow anyone back into the building until instructed by the assigned Emergency Coordinator and/or Emergency Services (Fire Dept.).

  	No.	ETR-MT-MPL-H&S-020
HEALTH AND SAFETY	Effective Date	3-June-2025
WORKPLACE INSPECTION and HOUSEKEEPING PROGRAM	Revision	2025.1

POLICY STATEMENT

ETR is committed to ensuring the health and safety of everyone in the workplace. It recognizes the importance of workers and employers working together to identify and resolve health and safety issues in the workplace. ETR is committed to complying with applicable legislation by maintaining a tidy workplace and conducting workplace inspections (audits) at regular intervals, to ensure a workplace that is safe and free of hazards that could contribute to workplace incidents or injuries.

PROCEDURE

WORKPLACE INSPECTIONS

Regular JHSC/WC workplace inspection schedule will be documented and posted in a conspicuous location in the workplace. Inspections of each work area are to be completed on a monthly basis or at least part of the workplace completed monthly. The purpose of the inspections is to identify potential and actual hazards in order to eliminate/control at the source. Following **every** workplace inspection, the worker conducting the inspection **shall** sign and submit to management a completed **Workplace Inspection Checklist**.

Inspections and follow up to inspections can:

- Prevent incidents.
- Detect wear, tear or potential failure of equipment, tools, or materials.
- Prevent damage to property, equipment, and material.
- Ensure that there is no equipment misuse.
- Improve housekeeping standards.
- Eliminate or minimize any fire hazard.
- Protect the integrity of the environment

SUPERVISORS AND MANAGERS

Supervisors/Managers shall conduct daily inspections/audits of their worksites as part of their normal work routine. These inspections shall be conducted prior to assigning tasks to team members and periodically throughout the day.

Purpose of inspections:

- Recognize hazards and take corrective actions applicable in the circumstances. Collaborate with the JHSC/WC for recommendations.
- Communicate the potential and actual hazards to the workers
- Continual monitoring of critical parts and equipment performance.
- Identify maintenance and repair work when required.
- Identify gaps in policies/procedures such as documented equipment inspections (forklifts, cranes, etc.)
- Eliminate/Control housekeeping hazards that may lead to slip, trip hazards.

- To promote a positive safety culture by communicating a proactive approach to Health and Safety.

WORKERS

- Shall be provided with time prior to end of shift to clean up their work areas.
- Shall conduct inspections of equipment as required by legislation and ETR policies.
- Are expected to support this policy/procedure in order to eliminate/control hazards that are created by poor housekeeping.

INSPECTION PROCEDURES

When performing a planned JHSC/WC inspection:

- Cover the work area systematically, inspecting one item at a time.
- Look for items in out of the way places, which might be missed in the daily walk around.
- Reference equipment/worksites checklists and/or safe operating procedures to ensure that all items are covered.
- Complete the inspection using the workplace specific checklist.
- Clearly describe and identify the location of each deficiency using established names and markings. (take pictures if authorized to carry phone)
- Record damaged or malfunctioning equipment or material.
- Record inadequate or incorrect work procedures.
- Record unnecessary items, such as unused material or equipment.
- Note cluttered and poorly arranged areas (poor housekeeping).

If, during the inspection, equipment is discovered that poses a serious health and safety risk or is identified as non-compliant then the equipment must be removed from service. Ensure the inspection report contains a record of the corrective actions taken (notes, text/call to Supervisor etc.) for all identified hazards prior to the inspection report being filed.

WORK EQUIPMENT AND SAFETY EQUIPMENT

All work and safety equipment will be identified and inventoried. All workers must follow manufacturers' specifications and maintenance and inspection protocols required by OHSA, CLC, Regulations, standards and codes for all vehicles, machinery, tools, equipment, and fire safety equipment.

HOUSEKEEPING

ETR is committed to maintaining a tidy workplace. As such, ETR shall ensure that its workplace is cleaned regularly. ETR shall provide time at the end of each work day for general clean-up by employees, of their work areas. ETR will either assign team members internally to perform regular housekeeping duties, or alternatively, hire a third-party to perform cleaning services. ETR shall set a regular cleaning schedule.

YEARLY REVIEW

ETR in conjunction with JHSC/WC shall review this policy and procedure on an annual basis or more often if necessary.

  	No.	ETR-MT-MPL-H&S-024
HEALTH AND SAFETY	Effective Date	13-May-2025
FIRST AID POLICY AND PROCEDURE	Revision	2025.1

POLICY STATEMENT

ETR is committed to ensuring the health, safety and well-being of everyone in the workplace by protecting and enhancing a positive encompassing culture through the creation of a First Aid procedure to ensure timely and effective care after an injury or reported exposure. ETR recognizes the importance of ensuring that all identified parties understand and follow applicable legislation to support the workplace.

SCOPE

ETR shall at all times maintain the minimum number of first aiders and first aid supplies based on the applicable worker count, types of hazards in the workplace and travel distance to a hospital or other professional medical services.

ROLES AND RESPONSIBILITIES

Employer

- Ensure that the employer's commitment to provide first aid equipment, services and supplies are met.
- Ensure written instructions are developed and implemented to address the first aid requirements for summoning first aid, treating, and transporting of injured workers.
- Direct workers to report all injuries, industrial diseases, and illnesses.
- Ensure first aid attendants have sufficient time to assess, treat, document, and follow up on injured workers.
- Shall ensure an appropriate number of first aid kits are available and easily accessible

Management/Supervisors

- Instruct all workers on written procedures regarding who and how to call for first aid, transportation of injured workers, and access/egress routes.
- Assign responsibility to monitor and ensure first aid attendants maintain current first aid certification at the workplace.
- Assign responsibility to inspect monthly and restock first aid supplies as required

Workers

- Immediately report all injuries, industrial illness, regardless of the extent or injury, to a supervisor or first aid attendant.
- Cooperate with First aid attendant and provide details of nature of injury

First Aid Station and Personnel

The companies first aid boxes shall be maintained in good condition and shall be large enough so that each item is in plain view and easily accessible. Moreover, the expense of furnishing and maintaining first aid appliances and services shall be the responsibility of the company.

The company shall post:

- The Ontario Workplace Safety and Insurance Board's "In Case of Injury" poster (Form 82).
- The valid first aid certificates of qualification of the trained workers on duty; and

- Ensure that its first aid boxes and their contents are checked regularly and are in good working order. Inspections shall be completed using the inspection forms provided.

In the event that a worker needs first aid treatment, use the **First Aid Log book**.

The company shall ensure that its first aid station is at, all times, in the charge of a worker who is the holder of:

- A valid St. John Ambulance Standard First Aid Certificate or its equivalent for workplaces with more than 5 workers.
- Works in the immediate vicinity of the first aid box.

NALOXONE KITS

If the company becomes aware, or ought reasonably to be aware, that there may be a risk of a worker having an opioid overdose at a workplace where that worker performs work for the employer, or where the prescribed circumstances exist, the employer shall, provide and maintain a Naloxone kit.

The kit must be kept in the vicinity of a worker who has received the required training and at any time workers are present in the workplace. The Naloxone Kit must be stored at room temperature (15C to 25C), kept in the kit until ready for use and protected from light.

The names and workplace locations of workers who are in charge of the naloxone kit and have received training will be posted in a conspicuous location closest to the kits.

Procedure

When an injury or health related issue occurs:

1. Injured worker or nearby co-worker shall notify supervisor immediately, an injury has occurred.
2. If injured worker is able to proceed to nearest first aid station, supervisor shall ensure a certified first aid attendant is available to assess and treat the injured worker.
3. If injured worker is unable to relocate, first aid attendant shall come to him/her.
4. First aid shall be provided by certified first aider based on injuries/illness.
5. Initial assessment shall determine the need or not for external medical care.
6. If assessment determines standard first aid is applicable, first aid shall be administered.
7. First aid attendant together with injured worker shall fill out the first aid log book
8. Discuss returning back to work with the worker and supervisor, reassess injury after a period of time where applicable.
9. If external medical care is required, supervisor shall arrange for safe transportation to hospital or clinic.
10. Supervisors shall conduct an investigation based on the circumstances and fill out an accident/incident investigation form.
11. All applicable information shall be reviewed and signed off by each terminals Manager and then submitted to HR and Corporate Health and Safety Specialist.

For the purposes of this Policy, and subject to applicable legislation, the following shall be deemed to be a workplace

1. A railway train, vessel on which a worker is employed.
2. A vehicle being used by an employer to transport workers; or
3. A vehicle used by employees to carry out their duties as an employee.

FIRST AID RECORDS

The company shall maintain at the workplace a record of all injuries and exposures to contaminants that are reported or treated.

- First aid records must be kept for at least 3 years.
- The first aid records do not identify the worker, or
- Workers may request or authorize access to their first aid records for any treatment or report about themselves.

The company's HR department shall keep the first aid records, to respect worker privacy as per legislation and has limited access to first aid records. The first aid records must be kept private, and that no person other than the worker has access to their first aid records.

The only exceptions to the privacy and security requirements are:

- An inspector requires the production of the first aid records for purposes of inspection.
- The first aid records do not identify the worker; or
- The worker has given written consent to disclose their first aid records.

FIRST AID KIT INSPECTIONS

The company shall ensure that its first aid boxes and their contents are checked monthly, to ensure that they are fully stocked as prescribed. Inspections shall be completed using the First Aid Inventory Form.

YEARLY REVIEW

The company in conjunction with JHSC/WC shall review this policy and procedure on an annual basis or more often if necessary.

Definitions:

“worker” means any of the following, but does not include an inmate of a correctional institution or like institution or facility who participates inside the institution or facility in a work project or rehabilitation program:

1. A person who performs work or supplies services for monetary compensation.
2. A secondary school student who performs work or supplies services for no monetary compensation under a work experience program authorized by the school board that operates the school in which the student is enrolled.

3. A person who performs work or supplies services for no monetary compensation under a program approved by a college of applied arts and technology, university, career college or other post-secondary institution.
4. REPEALED: 2017, c. 22, Sched. 1, s. 71 (2).
5. Such other persons as may be prescribed who perform work or supply services to an employer for no monetary compensation.

“workplace” means any land, premises, location or thing at, upon, in or near which a worker works;

  	No.	ETR-MT-MPL-H&S-023
HEALTH AND SAFETY	Effective Date	3-June-2025
WHMIS 2015 POLICY AND PROGRAM	Revision	2025.1

POLICY STATEMENT

ETR is committed to providing a safe environment for workers and visitors who work with or around hazardous materials. ETR shall take steps to ensure that materials described as

“hazardous products” are identified and all persons in the workplace will be made aware of and trained on the hazards specific to these products.

SCOPE

This policy addresses the requirements of *WHMIS* 2015 and is intended to:

- Educate workers on the potential health and safety hazards associated with using, storing, handling, and disposing of hazardous products.
- Prevent chemical-related accidents, incidents, injuries, and illnesses.
- Ensure appropriate and accurate labelling and documentation of hazardous products in the workplace.

ROLES AND RESPONSIBILITIES

Employers shall ensure:

- Hazardous products and materials are used, handled, and stored in the manner as prescribed.
- All hazardous products and materials are identified and labelled in the manner as prescribed.
- Proper policies, procedures and protocols are in place to ensure that proper records and data concerning hazardous products in the workplace are maintained.
- All workers are trained in the use, handling, storage, and disposal of hazardous products and keep records of training logs.
- That an introduction of any new product or composition change of a current product that all employees are notified and retrained on specific product.
- Training needs are reviewed with the JHSC/WC on an annual basis.
- Copies of all SDS are available to all workers and the JHSC/WC.
- Copies of SDS are made available to regulatory authorities upon request.

Supervisors shall:

- Advise all employees of the location of SDS for hazardous products.
- Advise all employees who may be exposed to hazardous products of the hazards of such products that may be present when used in the workplace.
- Ensure appropriate WHMIS training is provided to all employees prior to assigning them to work with hazardous products.
- Communicate and enforce safe work procedures and personal protective equipment requirements with workers.
- Ensure that employees do not use hazardous products in the workplace until the SDS has been reviewed and appropriate measures are in place.
- Produce workplace labels when required.
- Perform routine inspections to ensure the requirements of this policy are met.

Workers shall:

- Complete WHMIS 2015 training provided by the employer.

- Adhere to safe work practices and procedures when working with hazardous products.
- Refrain from using any hazardous products until SDS has been reviewed and appropriate measures have been put in place to minimize risk.
- Report to supervisors any concerns about hazardous products in the workplace.

Joint Health and Safety Committee/Workplace Committee shall:

- During the monthly workplace inspections, verify that hazardous products are appropriately labelled and that SDS are up-to-date and readily available to all workers.
- Annually, in consultation with management, review the WHMIS 2015 training program to ensure compliance and applicability.

TRAINING REQUIREMENTS

All employees shall be trained in all aspects of WHMIS 2015, but will not be limited to:

- The content required to be on a supplier label and a workplace label and the purpose and significance of the information on the label.
- Procedures for safely storing, using, and handling hazardous products.
- Information on the contents (format) required on a Safety Data Sheet (SDS) and the purpose and significance of the information.
- Where to obtain a copy of the SDS.
- Procedures to be followed in case of an emergency involving a hazardous product.

HANDLING PROCEDURES

Everyone involved at ETR must follow required procedures under WHMIS and the *Hazardous Products Regulations (Canada)*.

Supplier Labels

- Individuals who supply hazardous products are required to apply a label that meets the requirements of the *Hazardous Products Regulations*.
- A supplier label has six sections in a set order and minimum information is prescribed. Standardized hazard statement, signal words and symbols will appear on the label according to the classification of that chemical or mixture. Precautionary statements may also be required.
- No one shall alter a supplier label on a container containing hazardous products.
- If the label applied to a hazardous product or a container of a hazardous product becomes illegible or is removed, the employer shall replace the label with either a supplier label or a workplace label.
- When significant new data is received by ETR about a hazardous product, ETR shall, as soon as possible, attach the new information to every relevant supplier label and ensure that employees are trained.
- Supplier labels must be in both official languages in Canada – English and French.

Workplace Labels

A workplace label is required if:

- a hazardous product is transferred or poured into another container; or
- a supplier label is lost or illegible.

A workplace label should contain:

- the product name (which must match the SDS product name).
- safe handling precautions (which may include pictogram or other supplier label information); and
- a reference to the SDS.

Safety Data Sheets (SDS)

Safety Data Sheets (SDS) are summary documents that provide information about the hazards of a product and advice about safety precautions. SDS are usually written by the manufacturer or supplier of the product.

SDS provides more detailed hazard information about the product than the label. They are an important resource for workers to help learn more about the product(s). Use this information to identify the hazards of the products you use and to protect yourself from those hazards, including safe handling and emergency measures.

SDS tells users what the hazards of the product are, how to use the product safely, what to expect if the recommendations are not followed, how to recognize symptoms of exposure, and what to do if emergencies occur.

SDS must be readily available for the JHSC/WC and to workers who are exposed to hazardous products.

A supplier will provide the SDS, in English and French, to the purchaser of the hazardous product either in hard copy or by electronic means.

SDS must be updated **within 90 days** of the supplier becoming aware of new information that changes how the hazardous product is classified or the way it will be handled or stored.

HAZARDOUS PRODUCT INVENTORY

- ETR will complete an inventory of all the hazardous products used or stored at each site.
- This inventory must be reviewed and updated annually or as changes are required.
- The most current review date will appear on the inventory list.
- An inventory must be maintained for all the different groups/departments using or storing any type of chemicals.

YEARLY REVIEW

ETR in conjunction with JHSC/WC shall review this policy and procedure on an annual basis or more often if necessary.

  	No.	ETR-MT-MPL-H&S-021
HEALTH AND SAFETY	Effective Date	27-May-2025
HAZARD ASSESSMENT PROGRAM	Revision	2025.1

PURPOSE

The purpose of the hazard assessment is to identify and evaluate the conditions that could lead to workers getting hurt or becoming ill. Hazard assessments and controls are the core of every organization's occupational health and safety system.

All workers of ETR shall report any hazards that they are aware of, to their supervisor or manager immediately. ETR Managers/Supervisors shall investigate all reported hazards as soon as they are made aware of them. ETR shall eliminate and/or control hazards to minimize risks.

HAZARD ASSESSMENT PROCEDURE

Hazard Recognition

Before hazards can be eliminated or controlled, they must first be recognized as a hazard.

Hazard - is any source of **potential** damage, harm or adverse health effects on something or someone.

Every workplace consists of five major contributing factors:

1. People (employees, visitors, suppliers, sub-contractors, etc.).
2. Environment they work in.
3. Materials they work with; and
4. Equipment and tools they use.
5. Process of how and when things are done

Hazard Assessment

Hazard Assessments shall be conducted on all Job tasks, projects/worksites in the form of a thorough look at the workplace to identify what actual and potential hazards exist.

The Hazard Assessment Form shall be used to document the tasks, hazards, current and potential controls.

Recommendations should be made to eliminate or control each of the hazardous conditions identified. The recommendations should include specific actions required to correct the problem.

Hazards are identified during JHSC monthly inspections and they are inputted into the Health and Safety Action item tracker, the tracker shall be Managed by the Terminal Manager to ensure items are assigned and taken care of efficiently.

ETR must be able to demonstrate that all existing and potential hazards have been identified.

Employer

- Assess the workplace and identify existing and potential hazards before work begins at the workplace or prior to the construction of a new workplace.
- Prepare a report of the results of the hazard assessment and methods used to control or eliminate the hazards identified.
- Ensure that the date on which the hazard assessment is prepared or revised is recorded on it; and
- Ensure that the hazard assessment is repeated at reasonable intervals, when a new work process is introduced, when a work process or operation changes, or before the construction of significant additions or alterations to the workplace.

Supervisor/Manager

Upon receiving a hazard reporting form, or upon becoming aware of a workplace hazard, supervisors and members of management must:

- Complete the second part of the hazard report form within 24 hours of receiving it.
- Make recommendations regarding how to control the hazard and establish a corrective action plan for carrying out those recommendations.
- Assign a member of management, or a supervisor, or both, to implement the corrective action plan and to ensure that the hazard is eliminated or control.
- Confirm completion and execution of the corrective action plan.
- File and maintain a record of the hazard report.
- If applicable, submit the complete hazard report form and corrective action plan to management and to the JHSC, as the case may be (if applicable); and
- Advise the worker who reported the hazard of the outcome of the report and corrective action plan.
- Conduct hazard assessments on daily job tasks/activities to ensure adequate controls of the recognized hazards.
- Shall email reported hazards (verbal or written) to all site management and supervisors and input identified hazards into the Action tracker for full transparency.
- Collaborate with JHSC/WC.

Worker Participation

- ETR will involve workers in hazard assessment, elimination, and control activities. Workers are often very knowledgeable about the tasks or processes being assessed and can be directly affected by the hazard elimination and control activities.
- All workers are required to report hazards to their manager, supervisor as soon as they are aware of a hazard. This initial report could be done verbally and the supervisor/manager shall document.
- If the verbal reported hazard has not been actioned, then the employee shall fill out the **Hazard Reporting Form** and submit to Director of Operations and the Corporate Health and Safety Specialist.

Hazard Elimination and Control

Hazard controls are the method of preventing or controlling worker exposure to health and safety hazards. ETR shall assess and develop a method of control to reduce and/or eliminate these risks.

Whenever possible, hazards should be eliminated or controlled at the source using engineering solutions. If this is not possible, controls should be placed between the source and the workers. The closer a control is to the source of the hazard the better. If this is not possible, hazards must be controlled at the level of the worker through administrative controls and personal protection equipment (PPE). There is a specific standard process in the management of hazards that must be followed to assure that the best system of control is realized. This is referred to as the **“Hierarchy of Controls.”**

TYPES OF CONTROLS

ENGINEERED CONTROLS

Engineering controls provide the highest degree of worker protection because they eliminate or control the hazard at its source.

Engineering controls include the following:

- **Elimination** – getting rid of a hazardous job, tool, process, machine, or substance.
- **Substitution** – if elimination is not practical, try substituting or replacing one substance or process with another.
- **Redesign** – hazards can sometimes be “engineered out” through redesign of the worksite, stations.
- **Isolation** – hazards can sometimes be isolated through containment or enclosure.
- **Automation** – some processes can be automated or mechanized.

Administrative Controls

If engineering controls cannot eliminate or control a hazard, administrative controls can be used to reduce the risk of the hazard. Administrative controls are process and procedure related. Changing the way, the job is managed reduces the risk of injury. Safe work procedures (work instructions) are administrative tools that provide safe work guidance. Administrative controls are less effective than engineering controls since they do not eliminate the hazards.

Personal Protective Equipment (PPE)

As a last resort, workers may need to use PPE to reduce the potentially harmful effects of exposure to a known hazard. PPE must be used properly and consistently to be effective.

ETR may use a combination of engineering controls, administrative controls and/or Personal protective equipment that results in a greater level of worker safety than if each was used individually.

EVALUATION OF CONTROLS

ETR, along with the JHSC/WC shall evaluate the newly established controls to determine their effectiveness.

YEARLY REVIEW

ETR in conjunction with JHSC shall review this policy and procedure on an annual basis or more often if necessary.

Types of Hazards

Types of Hazards	
Biological Hazards	bacteria, viruses, insects, plants, birds, animals, and humans, etc.
Chemical Hazards	depends on the physical, chemical, and toxic properties of the chemical.
Ergonomic Hazards	repetitive movements, improper set up of workstation, pushing/pulling, shift work, tools, etc.
Physical Hazards	radiation, indoor air quality, temperature extremes, pressure extremes, noise, etc.
Psychosocial Hazards	stress, conflict between job demands, violence, harassment, etc.
Safety Hazards	slipping/tripping hazards, inappropriate machine guarding, equipment malfunctions or breakdowns.



THE ESSEX TERMINAL RAILWAY COMPANY SAFETY BOOT POLICY

The Essex Terminal Railway is committed to the safety of our employees, contractors, and visitors. Each worker is exposed daily to foot and ankle injury hazards. Due to the nature of work and responsibilities, management has evaluated hazards that require the use of PPE such as protective

footwear. Management has designated the types of PPE that will protect against these hazards to minimize risk and injury to the employee.

As of January 01, 2019 employees will be required to have as part of their PPE, 8 inch CSA approved, “Green Triangle” toe capped boots with puncture-resistant soles. All employees must wear their footwear properly for maximum protection. Boots must be tied securely to the top, if equipped with laces, to help protect against ankle sprains caused by rolling over on the ankle.

The employee will be reimbursed for the cost of their footwear as per their collective agreement. The employee will be responsible for the reasonable care and maintenance of the footwear. All employees will be responsible for wearing their protective footwear while performing any work related activities.



THE ESSEX TERMINAL RAILWAY COMPANY SAFETY VEST POLICY

The Essex Terminal Railway is committed to the safety of our employees, contractors, and visitors. Each worker is exposed daily to personal injury risk or hazards. Due to the nature of work and responsibilities, management has evaluated hazards that require the use of PPE such as High-visibility safety apparel. Anytime someone is on ETR Property they are required to wear High-Visibility safety apparel (e.g., Vest, Shirts, Bibs or Coveralls.)

High-Visibility safety apparel (HVSA) is clothing that workers can wear to improve how well other people "see" them. Most often, High-Visibility clothing is worn to alert drivers, locomotive engineers, equipment operators and coworkers of employee's presence, especially in low light and dark conditions. High-Visibility items allow you to be seen by the drivers of those vehicles (cars, trucks or other machinery traveling under their own power - e.g., forklifts, backhoes, locomotives etc.) sooner and more readily. This fact increases your safety at work. The human eye responds best to large, contrasting, bright or moving objects. Worker visibility is enhanced by high colour contrast between clothing and the work environment against which it is seen.

During working hours, all employees of the Essex Terminal Railway must wear High-Visibility safety apparel as per Essex Terminal Railway Personal Protective Equipment Requirements. All High-Visibility safety clothing must meet CSA Standard Z96-15 for High-Visibility Safety Apparel.

During working hours, all employees who are required to cross Lincoln Road, MUST wear High-Visibility safety apparel. Employees crossing Lincoln Road before or after working hours to reach the parking areas are encouraged to wear High-Visibility safety apparel.

In addition to the above, all employees entering the Engine House, in the vicinity of Track Maintenance or the Repair Track, MUST wear High-Visibility safety apparel AT ALL TIMES.

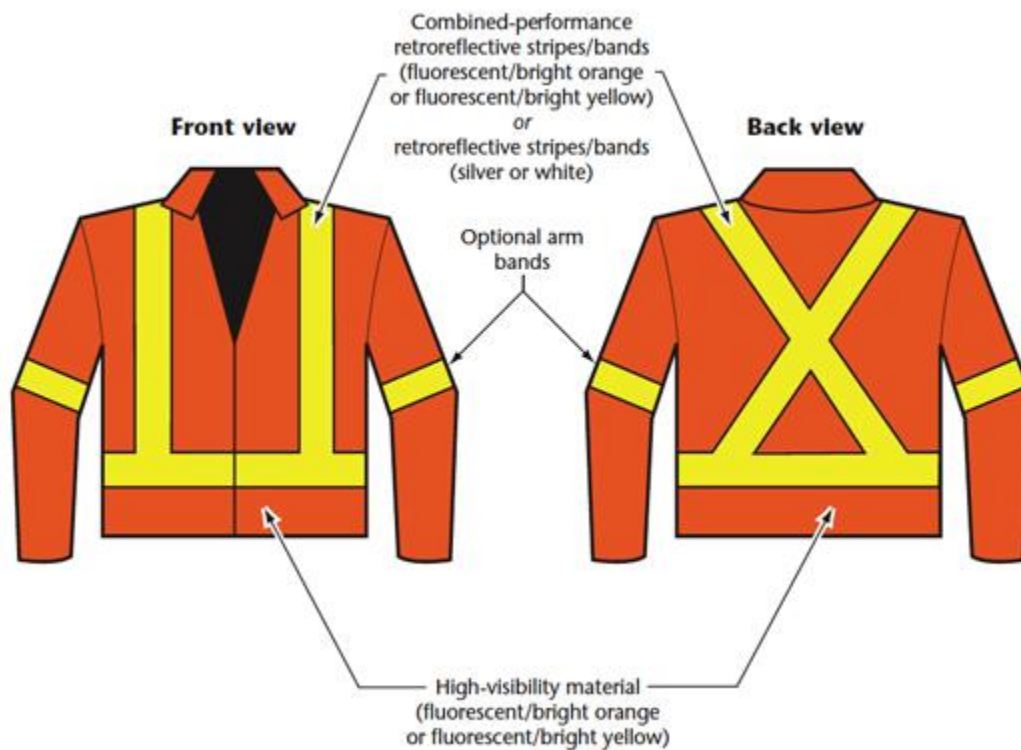
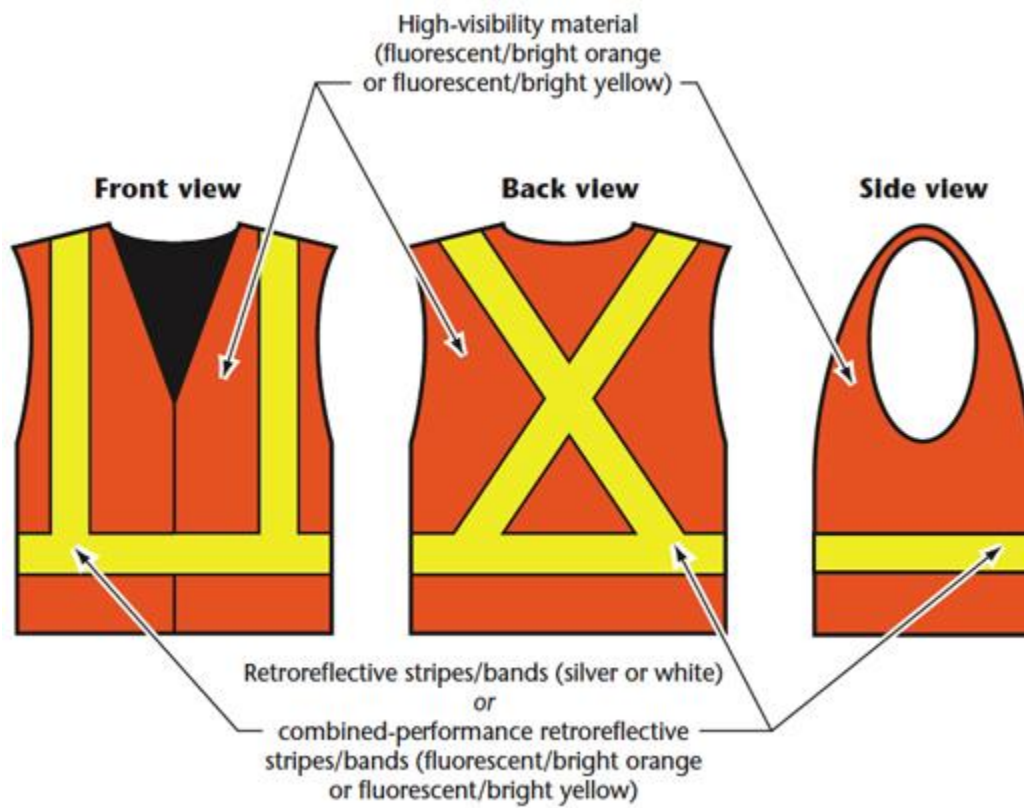
To comply with the ETR and CSA Standard, the HVSA should meet the following criteria;

COLOUR:

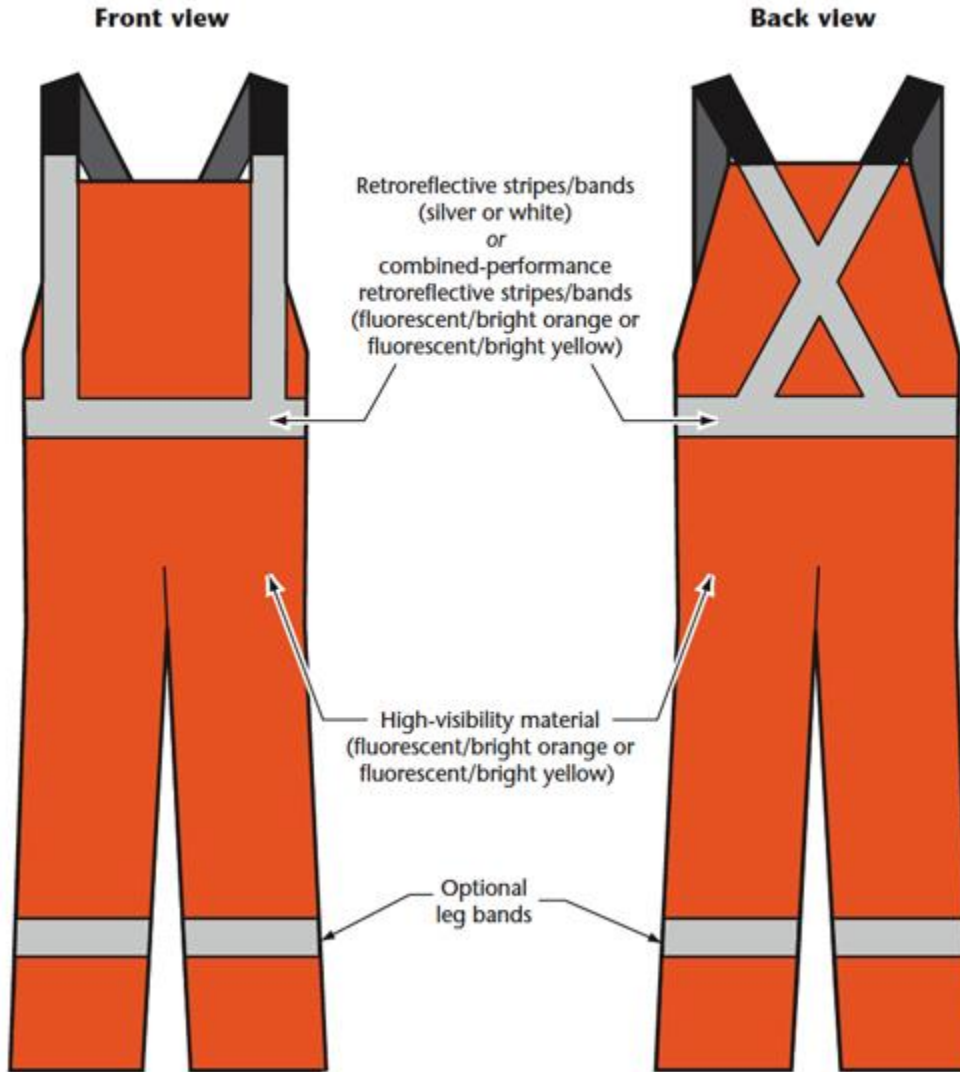
Background material must be fluorescent orange, bright orange or fluorescent yellow, bright yellow.

STRIPES/BANDS:

- a. A waist-level horizontal stripe/band that goes completely around the HVSA.
- b. Two vertical stripes on the front passing over the shoulders and down to the waist.
- c. A symmetric "X" on the back extending from the shoulders to the waist.
- d. Stripes/bands encircling both arms and both legs are added on coats and coveralls.



Bib overalls



CARE/MAINTENANCE:

- Keep your high-visibility apparel clean and well-maintained. Contaminated or dirty reflective materials provide lower visibility.
- Replace garments that show signs of wear and tear, soiling, or contamination as it will no longer be able to provide acceptable levels of visibility.

Purchasers of HVSA should get proof that the materials used and the design of the garment meet the requirements of the CSA Z96-15 Standard.

It is also the responsibility and duty of all supervisors to ensure that any and all visitor(s) who enter on to the Essex Terminal Railway property, wear proper protective equipment for the area they are in.

Our goal is to provide all of our employees with a High-Visible presence in an ongoing effort toward safety.



PERSONAL PROTECTIVE EQUIPMENT REQUIREMENTS

OPERATING DEPARTMENT

All Operating employees will wear personal protective equipment that will include but not limited to if employees require additional protection:

YARDMASTERS (Not required when in office) AND TRAINMEN;

1. Safety Glasses
2. 8" Safety Boots
3. High-Visibility Safety Apparel (Vest, T-Shirts, Sweatshirt or Coat)
4. Work Gloves
5. Long Pants
6. Hard Hats when required by customer specific PPE requirements

ENGINEMEN;

1. Safety Glasses*
2. 8" Safety Boots
3. High-Visibility Safety Apparel (Vest, T-Shirts, Sweatshirt or Coat)**
4. Work Gloves when required
5. Long Pants

**Safety glasses are not required to be worn inside the cab of the Locomotive when windows are closed.*

***High-Visibility Safety Apparel is not required to be worn inside the cab of the Locomotive.*

HOSTLERS;

1. Safety Glasses*
2. 8" Safety Boots
3. High-Visibility Safety Apparel (Vest, T-Shirts, Sweatshirt or Coat)**
4. Work Gloves when required
5. Long Pants

Cutting goggles will be worn when using oxy-acetylene torch for cutting, heating & brazing.

Welding helmet when welding.

Full face piece respirator mask at minimum when cutting, grinding, welding in enclosed areas

Full face piece respirators are to be worn when sanding engines, using the power washer with soap, or spraying chemicals; eg. Electrical equipment.

Ear protection when around wheel cutting, wheel grinding or anywhere loud noise may occur.

Hard Hats must be worn when using overhead chain falls; eg. Motor rebuilds, when cranes are being used; eg. Wheel changes, and when there is any danger of anything falling from overhead. When working under engines bump hats may be worn in lieu of hard hats.

Employees will put Blue Flag Procedure into effect while working on railcars on any track, as per C.R.O.R. 26.

Only employees who have been trained and certified in the Operation of the Lift Truck & Scissor Lift and Fall Protection are authorized to use this equipment.

**Safety glasses are not required to be worn inside the cab of the Locomotive when windows are closed or worn inside any company vehicles when windows are closed.*

***High-Visibility Safety Apparel is not required to be worn inside the cab of the Locomotive or inside any company vehicle.*

MECHANICAL DEPARTMENT

All Mechanical employees will wear personal protective equipment that will include but not limited to if employees require additional protection:

CAR INSPECTION;

1. Safety Glasses*
2. 8" Safety Boots
3. High-Visibility Safety Apparel (Vest, T-Shirts, Sweatshirt or Coat)**
4. Work Gloves when required
5. Long Pants
6. Hard Hats**

**Safety glasses are not required to be worn inside any company vehicles when windows are closed.*

***High-Visibility Safety Apparel and Hard Hats are not required to be worn inside any company vehicles.*

Employees while inspecting will put the Blue Flag Procedure into effect.

CAR REPAIR;

1. Safety Glasses
2. 8" Safety Boots
3. High-Visibility Safety Apparel* (Coveralls, Vest, T-Shirts, Sweatshirt or Coat)
4. Work Gloves
5. Long Pants
6. Hard Hats

**Exception to High-Visibility Safety Apparel will be made while wearing leather welding jacket, when necessary. At the time of wearing PPE that is not High-Visibility, orange pylons will be put in the work area for protection.)*

Employees will wear cutting goggles when using oxy-acetylene torch for cutting, heating, brazing.

Employees will wear welding helmet while welding.

Employees when cutting and welding under railcars, leather pants and leather jacket which are provided will be worn.

Employees at minimum when cutting, welding, grinding inside railcars or in the engine house or other enclosed area will wear appropriate respirator masks.

Employees will put Blue Flag Procedure into effect while working on railcars on any track.

Only employees who have been trained and certified in the Operation of the Lift Truck – Scissor Lift and Fall Protection, are authorized to use this equipment.

MAINTENANCE OF WAY DEPARTMENT

All Maintenance of Way employees will wear personal protective equipment that will include but not limited to if employees require additional protection:

TRACK DEPARTMENT;

1. Safety Glasses*
2. 8" Safety Boots
3. High-Visibility Safety Apparel (Coveralls, Vest, T-Shirts, Sweatshirt or Coat)**
4. Work Gloves
5. Long Pants
6. Hard Hats**
7. Hearing protection

**Safety glasses are not required to be worn inside any company vehicles when windows are closed.*

***High-Visibility Safety Apparel and Hard Hats are not required to be worn inside any company vehicles.*

FREIGHT OFFICE

All Freight Office employees will wear personal protective equipment that will include but not limited to if employees require additional protection:

**Safety glasses are not required to be worn inside any company vehicles when windows are closed.*

***High-Visibility Safety Apparel are not required to be worn inside any company vehicles.*

Anyone NOT wearing the above Personal Protective Equipment while working on ETR, CNR, CPR or anyone of our Customers property will be subject to discipline.

  	No.	ETR-MT-MPL-H&S-025
HEALTH AND SAFETY	Effective Date	5-June-2025
MUSCULOSKELETAL DISORDER POLICY AND PROGRAM	Revision	2025.1

POLICY STATEMENT

ETR is committed to preventing musculoskeletal disorder injuries and hazards causing the disorder in correlation to work conditions and job demands. Ergonomics is the relationship between people and their working equipment with a view to improving safety, ease of action and efficiency.

SCOPE

This policy and program is applicable to all managers/supervisors and workers who may be exposed to the possibility of MSI/MSD.

ROLES AND RESPONSIBILITIES

The employer shall:

- develop, implement, monitor and review job tasks.
- ensure that workers are adequately trained in ergonomics and material lifting/handling.
- where practicable, provide appropriate equipment, tools to reduce possibility of MSI.
- Review incidents related to MSDs in order to properly assess and control these hazards.

Managers/Supervisors shall:

- ensure proper equipment use and safe manual handling techniques by workers.
- monitor controls measures effectiveness and advise all workers of known or foreseeable hazards.
- take immediate steps to investigate and control MSI hazards that have been reported.

Workers shall:

- use proper lifting techniques and the equipment provided for heavy or awkward loads.
- report to the employer and/or supervisor any suspected risk factors associated with work.
- Assist with MSD risk factors identification, workplace evaluations and developing/implementing controls.
- participate in training regarding MSD awareness and prevention.

JHSC/WC will provide consultation regarding best practices, implementing control measures and conducting a regular review of activities performed that may cause or aggravate MSD's.

TRAINING AND EDUCATION

The company will train workers in all aspects of MSD Prevention and awareness including proper ergonomics along with lifting and handling techniques. Additional training includes identification of the early signs and symptoms of musculoskeletal injury and their potential health effects, and preventive measures including, where applicable, the use of altered work procedures, mechanical aids and personal protective equipment. The company will keep records of training.

MUSCULOSKELETAL DISORDERS (MSDS) PROGRAM

SIGNS and SYMPTOMS OF MSD INJURIES

There are two types of MSI/MSD:

- **Overexertion** – Occur suddenly when body is pushed too hard and attempts to lift, lower, push, pull or carry something that is too heavy.
- **Overuse** – Develops over time when a worker repeatedly does the same task or movement without sufficient recovery.

The following are a list of symptoms (not all inclusive):

- Pain,
- numbness,
- tightness, reduced flexibility,
- tingling,
- swelling and redness

MSD symptoms may go away overnight and could be a sign of fatigue, but if they are continuous, this may indicate a more serious problem. Workers experiencing such symptoms should report symptoms to their supervisor and health and safety. There may be individual differences in susceptibility and symptoms among workers performing similar tasks.

HAZARD RECOGNITION

The potential risk factors causing MSD are identified as:

- force required,
- posture, repetition,
- contact stress,
- vibration,
- cold stress,
- and mechanical compression.

HAZARD ASSESSMENT

The purpose of the hazard assessment is to identify and evaluate the conditions where the potential exists of MSD or injury in the handling and lifting of products/items and how to mitigate. The company will conduct risk assessments in conjunction with the JHSC/WC.

CONTROL MEASURES

Engineering

- Mechanical lifting aids such as hoists, pallet jacks, carts, instead of manual handling.
- Invest in anti-fatigue mats for those workers that stand a lot, or work on hard services such as concrete.
- Modify equipment or furniture to eliminate or reduce awkward postures.
- Change to the workstations or equipment that alters the physical composition of the area.

Administrative

- Rotating tasks between workers.
- Use safe work procedures to minimize risk factors.
- Heavy items are located at knee and waist height and light items above shoulder height.
- Change task design.
- Give workers time to rest or recover when lifting or handling loads.

Personal Protective Equipment (PPE)

- Ensure gloves fit properly. Padded, friction-enhanced or vibration limiting gloves.
- Workers that are required to kneel - knee pads or a kneeling pad can be used.
- Warm clothing if workers have to work in cold conditions.

POLICY REVIEW

This policy/program will be reviewed at least annually and updated as necessary by the company, in consultation with the JHSC/WC.

DEFINITIONS

Musculoskeletal Disorders (MSD)- An injury or disorder of the muscles, tendons, ligaments, joints, nerves, blood vessels, or related soft tissue that may be caused or aggravated by work.

Musculoskeletal Injury (MSI)- is an injury or disorder that affects the muscles, tendons, ligaments, joints, or other soft tissues. MSIs can be caused by work, repetitive motions, or awkward positions

Ergonomics - The scientific study of the relationship between people and their working equipment with a view to improving safety, ease of action and efficiency

 	No.	ETR-MT-H&S-028
HEALTH AND SAFETY	Effective Date	8-May-2025
LIFTING DEVICES POLICY and PROCEDURE	Revision	2025.1

POLICY STATEMENT

ETR is committed to ensuring the health and safety of everyone in the workplace by protecting and enhancing a positive encompassing culture through the safe operation of all types of lifting devices (overhead cranes, hoists, jib cranes, stackers) at any of the company's workplaces. It recognizes the importance of workers and employers working together to identify and resolve health and safety issues in the workplace.

SCOPE

This Policy applies to all employees, contractors, who regularly or occasionally may operate a lifting device while performing tasks at any site for the company. Lifting devices, are a vital part of operations at ETR.

ROLES AND RESPONSIBILITIES

Employers

- Provide competent supervision based on training, knowledge, and experience.
- Ensure that only those workers trained and deemed competent will be allowed to operate lifting devices. Copies of training must be retained.
- Ensure pre-use inspections are conducted and documented.
- Ensure adequate time for operators to perform pre-use inspections.
- Ensure documented periodic inspections of overhead cranes as per classes E and F (quarterly) are conducted by certified technicians.
- Instruct workers on the policy and procedure to ensure complete understanding.
- Ensure that workplace hazards, causes of incidents, near misses are documented and investigated.
- Work in conjunction with the JHSC on the management of the program.
- The company shall follow requirements under the OHSA, Regulation 851, CSA B167-16 and all other applicable codes and standards.

Managers/Supervisors

- Ensure operators receive documented training conducted by a competent trainer.
- Provide operators with access to manufacturer's operating manuals for safe use and proper maintenance.
- Provide and collect a copy of the filled-out pre-use inspections prior to the lifting device being used for the first time on shift.
- Shall review training matrix to ensure operators certification is current.

Workers/Operators

- Only operate if the proper training, certification, and instruction is completed.
- Shall operate lifting devices in a safe, responsible manner that is in accordance with training received.
- Shall complete a visual and functional inspection prior to using the lifting device per shift.
- Shall complete an inspection of all required rigging devices.
- Shall document the inspections on a checklist prior to daily use of the specific lifting device.

HAZARD IDENTIFICATION

It is the requirement of the operator to actively recognize and report hazards to their supervisor as soon as they are recognized. It is the duty of the supervisor to actively record and address these hazards.

TRAINING

The company shall ensure that workers that operate lifting devices are competent and certified. Operators receive recertification at intervals not exceeding three years.

The company shall conduct a refresher course to ensure competency in situations such as the following:

- Operator has been observed operating the lifting device in an unsafe manner.
- Operator has been involved in an accident.
- Operator is assigned a different type of lifting device.
- Environmental conditions in the workplace change.

FACILITY HAZARDS

The company shall:

- Conduct risk assessments in all areas that lifting devices are operating (warehouses, yards, maintenance shops)
- Ensure that the operators travel path is kept clear and free of hazards.
- Ensure consistent grading of the yard to reduce negative outcome of operations while using lifting device, reduce possible equipment and material damage.
- Adequate lighting must be provided wherever lifting devices are operating. If this is not practical, portable lighting shall be provided that illuminates the working area.
- Pedestrians must wear highly visible clothing at all times.

SAFE OPERATING GUIDELINES

- Lifting device operators must be certified to use the type(s) of Lifting devices being used.
- No part of a load may pass over any worker.
- No load may exceed the maximum rated load capacity of any part of the lifting device.
- When a load is in suspended position, the controls must be attended by an operator.
- Loads should be carried as close to the ground or floor as possible.

- Loads that may tip or fall and endanger a worker must be secured.
- When a Lifting device is required to load or unload a vehicle (truck), the vehicle must be immobilized and secured against accidental movement.
- A Lifting device left unattended must be left in the lowered position and immobilized and secured against accidental movement.
- All load weight information either through manifest or appropriate calculations specified should be made readily available to the Lifting device operator prior to lift.
- Passengers are never allowed in the Lifting device.
- As far as reasonably practical, the company shall restrict pedestrian access to areas where Lifting devices are operating.
- If a Lifting device operator believes that the load being moved is unsafe, the operator shall contact their supervisor.
- Lifting device operator shall utilize the horn whenever practical.
- Operator shall ensure good housekeeping practices in areas of lifting device operations.

MAINTENANCE

The company shall schedule and implement a preventative maintenance program to ensure all Lifting devices are maintained as per guidelines in owner's manuals.

Ensure any modifications and additions that affect capacity or safe operation of the Lifting device are approved by certified engineer.

POLICY REVIEW

The company in conjunction with JHSC/WC shall review this policy and procedure on an annual basis or more often if necessary.

 	No.	ETR-MT-H&S-030
HEALTH AND SAFETY	Effective Date	8-May-2025
MOBILE ELEVATED WORK PLATFORM POLICY and PROCEDURE	Revision	2025.1

POLICY STATEMENT

ETR is committed to ensuring the health and safety of everyone in the workplace by protecting and enhancing a positive encompassing culture through the safe movement of Mobile Elevated Work Platforms throughout all the company's workplaces. This policy is to define the requirements for employees regarding use of mobile elevating work platforms and other equipment that elevates an employee to a height, including – selection, inspections, maintenance, operation and fall protection systems. It recognizes the importance of workers and employers working together to identify and resolve health and safety issues in the workplace.

SCOPE

This Policy applies to all employees, contractors, who regularly or occasionally may operate an MEWP while performing tasks at any site for the company. MEWP's, are a vital part of operations at ETR.

Types of mobile elevating work platforms this policy applies to are:

- Self-Propelled Elevating Work Platform (scissor lift)
- Forklift Aerial Platforms

ROLES AND RESPONSIBILITIES

Employer

ETR shall ensure compliance with this policy and in conjunction with the fall protection policy and procedure.

- Ensure policies, safe work procedures are implemented and followed.
- Ensure all equipment, owned, or rented, meets legislative requirements, and is deemed safe for operation.

Supervisors

- Ensure employees receive the training and certification specific to the mobile elevating work platforms and equipment they will be using. Ensure employees are not operating MEWP without proper authorization.
- Ensure all documentation and training records are maintained.
- Ensure preventive maintenance is completed and records are maintained for mobile elevated work platforms.
- Ensure a pre job planning assessment is conducted.

- Ensure hazard assessments are conducted of the job, equipment, and worker safety to ensure all hazards are identified and mitigated.
- Ensure communication of this policy and the fall protection policy and procedure and specific work procedures to all applicable employees.
- Develop and communicate rescue plans and other emergency procedures for working on mobile elevating work platforms.

Employees

- Must follow this policy and instructions.
- Do not operate equipment without valid certification and training.
- Must inspect all equipment, tools, and personal protective equipment before use and document inspections.
- Conduct a hazard assessment prior to starting work.

HAZARD ASSESSMENTS

A hazard assessment shall be completed to identify and assess the need for the use of the mobile elevated work platform and hazards specific to the tasks.

A hazard assessment should include but not limited to:

- Work environment.
- Weather conditions.
- Ground, floor, surface, slope, debris.
- Inadequate surface and support to withstand all load forces imposed by the elevated work platform.
- Fall prevention.
- Overhead obstructions, overhead power lines.
- Other vehicles, pedestrians.
- Emergency preparedness and response.
- When dealing with traffic and pedestrians that cannot be eliminated from the work area, set up barriers around where the MEWP is operating.

TRAINING REQUIREMENTS

All workers must be authorized to operate an elevating work platform by completing theoretical and practical certified training. If not included, they must complete fall protection training. The operator must be familiar with:

- all operating instructions.
- conduct pre-use inspections.
- factors affecting stability.
- the use of fall protection systems.
- Must take into account the weight of all loads bearing on the equipment – limitations of the basket (refer to the rated capacity on placard located on the equipment).
- Knowledge of lifting restrictions.
- Clearance requirements.

INSPECTION AND MAINTENANCE RECORDS

Detailed reports of inspection, maintenance, repairs, and modifications must be kept permanently for the duration of the service life of the MEWP and available on request by Management, JHSC and MLITSD.

A manufacturer's manual is to be kept with the equipment or readily available.

A periodic inspection of the MEWP is recommended to be performed by a qualified person after 200 hours or more often if recommended by the manufacturer.

Annual inspection of the MEWP is recommended every 12 months from the prior annual inspection or 700 hours of use. This is to be done by a qualified person.

Structural inspections are required on a MEWP after 10 years from the manufacture date or if any suspected or potential damage occurs due to an accident that would affect the structural integrity. This inspection must be carried out under the direction of a professional engineer.

Operators shall conduct pre use inspections according to the manufacturer's specifications and maintain these records in a logbook with the equipment.

Operators must ensure that each set of controls be clearly identified to indicate their functions, has an emergency stop device within easy reach of the operator (must be labelled STOP and coloured red) and warning devices automatically activated when the MEWP is in motion and can be heard.

A maintenance and inspection record tag shall be provided and attached to the mobile elevating work platform near the operator's station and must include:

- the date of the last maintenance and inspection.
- the signature and name of the person who performed the maintenance and inspection.

FALL PROTECTION

Operators of mobile elevating work platforms are required to have fall protection training and always use personal fall protection. Only lifts equipped with proper anchor points are to be used. Fall protection SHALL be used at all times when the equipment is in motion.

RESCUE PLAN

A rescue plan for the MEWP is required and can involve a spotter watching the operator. The spotter must be trained in how to lower the MEWP in the event of an emergency. The controls must include a clearly marked overriding lowering control that will enable a worker at the lower controls to stop and lower the platform in an emergency.

YEARLY REVIEW

ETR in conjunction with JHSC/WC shall review this policy and procedure on an annual basis or more often if necessary.

  	No.	ETR-MT-MPL-H&S-027
HEALTH AND SAFETY	Effective Date	6-May-2025
FORK LIFT POLICY and PROCEDURE	Revision	2025.1

POLICY STATEMENT

ETR is committed to ensuring the health and safety of everyone in the workplace by protecting and enhancing a positive encompassing culture through the safe movement of forklifts throughout all the company's workplaces. It recognizes the importance of workers and employers working together to identify and resolve health and safety issues in the workplace.

SCOPE

This Policy applies to all employees, contractors, who regularly or occasionally may operate a forklift while performing tasks at any site for the company. Forklifts, are a vital part of operations at ETR.

ROLES AND RESPONSIBILITIES

Employers

- Provide competent supervision based on training, knowledge, and experience.
- Ensure that only those workers trained and deemed competent will be allowed to operate any forklift. Copies of training must be retained.
- Ensure pre-use inspections are conducted and documented.
- Ensure adequate time for operators to perform pre-use inspections.
- Ensure documented annual inspections as per manufacturer's specifications are conducted by certified technicians.
- Instruct workers on the policy and procedure to ensure complete understanding.
- Ensure that workplace hazards, causes of incidents, near misses are documented and investigated.
- Work in conjunction with the JHSC on the management of the program.
- The company will ensure the selection of a forklift will meet the needs and requirements of its operations.

Managers/Supervisors

- Ensure operators receive documented training conducted by a competent trainer.
- Provide operators with access to manufacturer's operating manuals for safe use and proper maintenance.
- Provide and collect a copy of the filled-out pre-use inspections prior to forklift being used for the first time on shift.
- Shall review training matrix to ensure operators certification is current.

- Arrange for forklifts to receive an annual inspection by a qualified mechanic.

Workers/Operators

- Only operate if the proper training, certification, and instruction is completed.
- Use forklifts in a safe, responsible manner that is in accordance with training received.
- Complete a pre-operative checklist prior to daily use of forklifts.

HAZARD IDENTIFICATION

It is the requirement of the operator to actively recognize and report hazards to their supervisor. It is the duty of the supervisor to actively record and address these hazards.

TRAINING

The company shall ensure that workers that operate forklifts are competent and certified. Operators receive recertification at intervals not exceeding three years.

The company shall conduct a refresher course to ensure competency in situations such as the following:

- Operator has been observed operating the forklift in an unsafe manner.
- Operator has been involved in an accident.
- Operator is assigned a different type or class of forklift.
- Environmental conditions in the workplace change.

FACILITY HAZARDS

The company shall:

- Ensure that overhead and side clearances, loading docks and doorways are adequate to permit safe operation of the forklift and to accommodate the load being moved.
- Ensure that the forklift's travel path is kept clear and free of hazards.
- Ensure consistent grading of the yard to reduce negative impact on the operator, reduce possible equipment and material damage.

Adequate lighting must be provided wherever forklifts are operating. If this is not practical, the forklift should be equipped with lighting that illuminates the working area.

Pedestrians and workers in the vicinity of forklift operations must be kept safe:

- Pedestrians must wear highly visible clothing at all times.
- Ensure that any storage racks being used are suitable for the type of forklift(s) being used; suitable, strong, and sturdy enough for the loads being supported.
- Outdoor yards have additional hazards that must be controlled, including safe walking paths, smooth surfaces, and adequate lighting.

SAFE OPERATING GUIDELINES

- Forklift operators must be certified to use the type(s) of forklifts being used.
- Forklift operator must use a seat belt at all times.
- No part of a load may pass over any worker.
- No load may exceed the maximum rated load capacity.
- All loads must be handled in accordance with the height and weight restrictions on the forklifts load chart.

- When a load is in the raised position, the controls must be attended by an operator.
- Loads should be carried as close to the ground or floor safely.
- Loads that may tip or fall and endanger a worker must be secured.
- When a forklift is required to load or unload a vehicle (truck), the vehicle must be immobilized and secured against accidental movement.
- Maintain sufficient air quality in areas where internal combustion engine forklifts are used, to control carbon monoxide and carbon dioxide hazards.
- A forklift left unattended must be immobilized and secured against accidental movement.
- All load weight information either through manifest or appropriate calculations specified should be made readily available to the forklift operator before the start of lifting operations.
- Passengers are never allowed in the forklift.
- As far as reasonably practical, the company shall restrict pedestrian access to areas where forklifts are operating.
- If a forklift operator believes that the load being moved is unsafe, the operator shall contact their supervisor.
- Forklift operator shall utilize the horn whenever practical and especially when reversing.
- Ensure it is equipped with adequate and properly operating headlights and tail lights when used after dark or in dimly lit areas.
- Operator shall maintain the forklift in reasonable condition as it relates to housekeeping. The cab, shall be kept clean, free of debris and garbage. Flashlights, tools, first aid kits, etc. shall be securely stored.

REFUELING

Refueling should be done in an area with adequate ventilation to prevent the accumulation of flammable vapours. Open flames in the refueling area are prohibited.

An appropriate class and size fire extinguisher must be in close proximity to the refueling operation and the operator must be trained on its use.

The forklift must be turned off, properly parked and the operator out of the forklift during refueling.

MAINTENANCE

The company shall schedule and implement a preventative maintenance program to ensure all forklifts are maintained as per guidelines in owner's manuals.

Ensure any modifications and additions that affect capacity or safe operation of the forklift are performed with the written approval of the manufacturer or a qualified professional engineer.

POLICY REVIEW

The company in conjunction with JHSC/WC shall review this policy and procedure on an annual basis or more often if necessary.

	 	No.	ETR-MT-MPL-H&S-031
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HEALTH AND SAFETY	Effective Date	13-May-2025
FALL PROTECTION POLICY and PROCEDURE	Revision	2025.1

POLICY STATEMENT

ETR is committed to ensuring the health and safety of everyone in the workplace by protecting and enhancing a positive encompassing culture through the safe use of fall protection equipment. It recognizes the importance of workers and employers working together to identify and resolve health and safety issues in the workplace.

SCOPE

This Policy applies to all employees, contractors, and visitors who regularly or occasionally work at heights and are exposed to the hazard of falling. Everyone who carries out work at heights or is exposed to the risk of falling from a height of more than 3 meters (10 feet) must receive specialized training. Working at heights includes work on sloped or flat roofs, in circumstances when adequate railings are not provided and may also include working on ladders or other elevated pieces of equipment or surfaces.

Fall protection must be used when a worker may be exposed to any of the following hazards:

- Fall from a temporary or permanent work area, a vertical distance of three (3) meters or more.
 - Fall from a vertical distance of less than three (3) meters where there is an unusual possibility of injury.
 - Falling into water or another liquid.
 - Fall at a temporary or permanent work area, into or onto a hazardous substance or object.
- Guardrails or other similar means of fall restraint must be used when practicable. If not practicable, a fall arrest system must be used.

ROLES AND RESPONSIBILITIES

Employers

- Develop a written fall protection policy and procedures relevant to the workplace.
- Provide the necessary resources that are required to implement the Policy.
- Ensure employees receive the necessary training for working at heights.
- Identify areas where there is potential for workers to fall and get injured.
- Provide workers with the necessary personal protective equipment (PPE) required to work safely.
- Create and develop a rescue plan in some situations and provide employees with the necessary equipment and training to carry out the rescue plan.

Supervisors/Managers

- Be aware of and enforce the requirements outlined in this Policy.
- Conduct hazard assessment for each and every working at heights job task to be performed and this assessment shall be communicated to all involved in the task.
- Whenever possible, eliminate any work that may expose workers to fall hazards.

- Ensure that employees are provided with any required fall protection equipment, are trained in the equipment, and competent in the safe use, care, and maintenance of the equipment.
- Ensure that fall arrest and travel restraint systems are inspected by a competent person before and after each use and that defective equipment is taken out of service immediately.
- Ensure, as according to manufacturer's guidelines, that an annual inspection and recertification of all systems be conducted by a certified 3rd party.

Employees

- Be aware of and adhere to the requirements outlined in this Policy.
- Perform a hazard assessment before work begins to identify any hazards that could lead to falls and injuries.
- Actively participate in fall protection education and training.
- Use PPE required for the task, ensure proper care and maintenance of the PPE.
- Inspect personal fall protection systems before each use and document.
- Notify the supervisor or employer about any broken, defective, or missing protective equipment. Be aware of your right to refuse unsafe work.
- Complete working at heights training to be deemed a competent person

Contractors/sub-contractors/constructors

- Be aware of and adhere to the requirements outlined in this Policy.
- Perform hazard assessments and control any fall-related hazards that are identified.
- Report all incidents or injuries.
- Have a working at heights program as applicable per Construction Regulations that meets or exceeds all the conditions outlined in this Policy.
- Ensure all employees have been trained in working at heights and have a valid and up-to-date certificate.
- Provide a copy of Training certificates to the Corporate Health and Safety Specialist.

TRAINING

All employees of ETR who are required to use fall protection equipment will be trained in its use by a competent person. Employees must be retrained by a competent trainer at least every three (3) years.

ETR may also require its workers to be retrained in the safe use of fall protection system under circumstances that include but not limited to changes in the workplace which render previous training obsolete, changes in the types of fall protection systems, or inadequacies in an affected employee's knowledge or use of fall protection systems.

In addition to the training described, workers will be made aware of the fall hazards particular to the work sites they are working at, and the steps being taken by ETR to eliminate or control those hazards.

INSPECTIONS

The inspection process is a critical step in preventing accidents that are caused from faulty or worn-out equipment.

All fall protection components must be inspected by the employee before and after each use. Annual inspections must also be performed on all components by a competent professional.

All fall protection systems, equipment, and components must be:

- maintained in good working condition.
- Stored in identified location

When safety-related concerns have been discovered through the inspections, or at any other time, the manager must be notified, and the equipment taken out of service immediately.

REMOVAL FROM SERVICE

Any fall protection equipment that is found to be defective must immediately be removed from service.

If the fall arrest equipment has been utilized to stop a fall, the entire fall arrest system must be removed from service and not returned to service until it has been re-certified.

RESCUE PLAN

ETR shall develop written rescue procedures before workers can use any fall-arrest system or when working at heights involving elevated work platforms. A rescue plan needs to be job and site-specific. Each job site will have its own set of unique conditions that need to be addressed in a rescue plan. The plan and its procedures must be reviewed with all employees involved. Plans should cover the on-site equipment, personnel, and procedures for different types of rescues. The rescue of suspended workers must happen as quickly as possible.

External Rescue services may be utilized in some situations.

Site management must ensure that:

- everyone on site is aware of the rescue plan.
- equipment and other resources are available to conduct a rescue.
- designated personnel are properly trained.
- any third-party Emergency Response Team that will be conducting the rescue has been notified of the time, location, and date of the job (if applicable).

RECORD RETENTION

Equipment inspection and training records for work involving the use of fall protection must be maintained by ETR and kept for a period of three years after the use of such equipment.

POLICY REVIEW

ETR in conjunction with JHSC/WC shall review this policy and procedure on an annual basis or more often if necessary.

  	No.	ETR-MT-MPL-H&S-036
HEALTH AND SAFETY	Effective Date	11-Aug-2025

INCIDENT INVESTIGATION POLICY AND PROCEDURE	Revision	2025.1
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POLICY STATEMENT

ETR is committed to the health, safety and well-being of employees, contractors, and visitors through conducting thorough investigations of near misses and incidents in order to identify direct, indirect and root causes. ETR is committed to finding root causes of all near misses, incidents in order to implement corrective actions to eliminate recurrences.

SCOPE

This Policy applies to all employees, contractors, and visitors who may be onsite for any purpose at any of our three facilities and/or any of our leased or rented locations. This policy will cover personal injuries and equipment near misses and incidents.

ROLES AND RESPONSIBILITIES

ETR is committed to ensuring that all near misses and incidents involving injury are thoroughly investigated in a timely manner and results are reported to all internal stakeholders and external agencies.

Employers

- Ensure that Managers/Supervisors Investigate all near misses, incidents in a timely manner
- Provide competent supervision based on training, knowledge, and experience.
- Ensure that Managers/Supervisors are trained and deemed competent to investigate workplace incidents.
- Ensure adequate time for Managers/Supervisors, JHSC/WC members to complete a thorough investigation of all incidents.
- Shall provide training on investigation techniques
- Instruct workers on the policy and procedure to ensure complete understanding.
- Ensure that workplace hazards, causes of incidents, near misses are documented, investigated and corrective actions implemented.

Managers/Supervisors

- Initiate Emergency plan procedures when applicable
- Contact all relevant personnel
- Investigate all near misses and incidents in a timely manner
- Communicate this policy/procedure to all employees.
- Conducting periodic inspections of work areas.

Workers

- Responsible for reporting all near misses and incidents.
- Secure and manage the scene when no Manager/supervisor is present
- Shall actively cooperate and participate in investigations when requested.

PURPOSE

Reasons to investigate a workplace incident:

- To determine the causes of the incident and to prevent similar incidents in the future
- Help to reduce costs of injuries/equipment damage
- To provide accurate and complete reports to all external agencies as required by applicable legislation.

PROCEDURES

STEPS:

1. Secure and Manage the Scene: Managers/Supervisors/Workers

Near Miss/Minor Incident

- Ensure Emergency Plan Procedures as per location have been initiated
- Assess injuries, provide first aid
- Secure the area if required,

Major Incident:

- Ensure Emergency Plan Procedures as per location have been initiated
- Assess injuries, provide first aid and ensure all external resources have been called
- Secure the area, establish a perimeter (barrier tape, cones)
- Assess existing hazards and initiate immediate control measures when required
- The scene shall remain **undisturbed** except for the purpose of saving life or relieving human suffering or preventing unnecessary damage to equipment or property.
- Contact Corporate Health and Safety Specialist (Mon-Fri, 8:00-4:00)
- Contact Corporate Human Resources (Mon-Fri, 8:30-4:30)
- Contact a worker member of the JHSC/WC
- **Director of Operations** shall contact Corporate Health and Safety Specialist if incident occurs outside the Mon-Fri hours of 8:00-4:00

2. Collecting Data and Gathering Evidence

- Pictures, sketches, taking measurements, interviewing witnesses, camera footage
- Inspection reports, policies, maintenance records, training records, H&S records
- After documenting observations and questioning witnesses, provide each witness with a witness statement form and have them individually in separate areas fill those out.

Record all observations made at the scene, such as:

- Environmental conditions
- Date and time of the accident
- Condition of the worker
- Machine, tool, or equipment involved
- Task employee was performing
- Take several pictures and make notes
- Document all discussions

Witness Questions:

- What Happened?
- Who was involved?
- Where did it occur?
- When did it occur?
- What were the conditions like? (weather, lighting, noise)
- What did you hear?
- What did you see?
- Where were you before and at the time of the incident?
- What were you doing?
- Did you observe anything out of the ordinary?

3. Analyzing Evidence and Identifying Causes

- Collect all evidence from other investigation team members.
- Collectively go over the evidence.
- Are you aware of any Safe work procedure for this task?
- Have you ever performed this task?
- Have the team members involved in the incident received training and instruction?
- Are you aware of any similar incidents in the past?
- Was this incident related to any known Risks in the workplace?
- What equipment or materials played a role in this incident?
- Discuss the 5 WHY method to determine a Root cause
- Re-enactments or demonstrations may be required to analyze evidence

4. Completing the Accident/Incident Investigation Form

The Report Should include:

1. Pictures, recordings, drawings
2. Direct and indirect causes, including contributing factors
3. Immediate and long-term corrective actions.
4. Submit the form

Remember your audience – This document will be used to support all parties involved (Employer, employee, etc.) It may be reviewed by all Management, WSIB, Lawyers and in any court proceedings. If you did not believe a witness' statement, make a note regarding the reasons for your skepticism. The report needs to be detailed, legible and accurate.

No accident investigation has ever changed what has already happened and therefore we should never assign blame but instead should identify gaps in the safety process.

ACTION PLAN

- Long term corrective actions shall have assigned responsibility along with a completion date
- Actionable items shall be discussed and reviewed with the JHSC/WC
- Corporate Health and Safety Specialist shall follow up on corrective actions to ensure they are implemented as discussed and done as designed.
- Employees involved in a major incident may be subjected to a drug/alcohol test depending on the severity and observations of the employee by Management.

- To book Drug test you can send an email to appointmentbookings@drivercheck.ca or call us on 1.800.463.4310 option 1.
- If Drug/alcohol testing is required, the employee shall remain isolated while waiting for the test to be administered.
- If a lab-based drug/alcohol test is required, the Director of Operations and Corporate Human Resources Manager shall decide on the next steps on a case-by-case basis.

TOOLKITS: Each yard should have at least one incident investigation kit.

- Phone/camera
- Tape measure
- Flashlight
- Clipboard, pen, graph paper for illustrations
- LOTO devices and tags
- Barrier tape

Definitions:

Near Miss- an unwanted, unplanned event that did not cause an injury or property damage but may have done so if conditions had been slightly different.

Minor incidents- An unwanted, unplanned event that caused a minor first aid treatable injury onsite or property damage that does not delay or impede operations.

Major incidents- An unwanted, unplanned event causing injury requiring external medical care and/or property damage that has forced a stoppage in operations. Critical Injuries/Fatality fall under Major incidents.

Critically injured- means an injury of a serious nature that,

- (a) places life in jeopardy,
- (b) produces unconsciousness,
- (c) results in substantial loss of blood,
- (d) involves the fracture of a leg or arm but not a finger or toe,
- (e) involves the amputation of a leg, arm, hand or foot but not a finger or toe,
- (f) consists of burns to a major portion of the body, or
- (g) causes the loss of sight in an eye;

5 Whys method- is a root cause analysis technique that involves repeatedly asking "why" to drill down from a problem's symptoms to its underlying cause. By asking "why" multiple times (typically five, but sometimes more or less), the goal is to uncover the fundamental issue that needs to be addressed to prevent the problem from recurring

Violence and Harassment Investigations- Refer to Provincial Violence and Harassment Program Procedure MT-MPL-HR-002, Federal Violence and Harassment Program Procedure ETR-HR-012

Work Refusal Investigations- Refer to Provincial Work Refusal Policy and Procedure MT-MPL-H&S-022, Federal, refer to ETR employee handbook. THE ESSEX TERMINAL RAILWAY COMPANY WORK REFUSAL POLICY.

	No.	ETR-H&S-037
HEALTH AND SAFETY	Effective Date	DRAFT
CONFINED SPACE POLICY AND PROCEDURE	Revision	2025.1

POLICY STATEMENT

ETR is committed to the health, safety and well-being of employees, contract employees that are required to work in confined spaces. ETR shall ensure the required training and necessary equipment is in compliance with all applicable local and federal regulations

SCOPE

This Policy applies to all employees, contractors, who regularly or occasionally may be part of a team required to work in a confined space. Identified confined spaces, grain hopper rail cars, service pit in engine house.

ROLES AND RESPONSIBILITIES

Employer shall:

- Ensure all workers are trained and comply with this policy.
- Ensure all required equipment for tasks to be completed safely are provided.
- Ensure rescue procedures, equipment have been communicated and available.
- Ensure a rescue team has been established, trained and available in the area of the confined space during entry into the confined space.
- Identify and create a log of confined spaces and hazardous confined spaces.
- Appoint a qualified/competent person to determine whether a confined space is a hazardous confined space.
- Ensure that a sign or marking at the entrance of the confined space clearly indicates the type of confined space. (confined space or hazardous confined space)
- Appoint a qualified person to conduct a hazard assessment and provide the signed and dated report to the employer. Copy of the report must be provided to the Workplace committee. This report shall be reviewed every 3 years or sooner if confined space structures change or the task completed in the confined space.
- Create safe work procedures for working in a confined space.

Supervisors/Managers

- Implement and train all employees on this policy.
- Ensure suitable training in the risks associated with tasks must be given to all relevant personnel.
- Ensure that all required equipment, tools, and PPE are available to execute the work safely.
- Ensure trained rescue staff is onsite and available if required
- Ensure proper training documentation is completed and retained
- Investigate incidents arising in the application of this policy, implementing necessary corrective actions following an incident or the identification of a risk or hazard.
- Complete required documentation prior to assigning tasks to be completed in a confined space.
- Create safe work procedures for confined space work.

Workers

- Comply with the requirements of this policy.
- Report any incidents, near misses, risks or hazards
- Participate in and complete all necessary training

- Wear all provided PPE required for the tasks
- Maintain and care for all PPE
- Complete required documentation prior to entering confined space

PROCEDURES

1. A qualified person shall assess possible confined spaces to identify if they are a confined space and what type.
2. Hazard assessments shall be conducted for each identified confined space. If two or more are similar in construction and the same hazards exist, the assessment can be reported in one document, but it shall clearly identify each space.
3. Hazard assessments shall be made available to the WC and every employee that may enter into the confined space or be involved in the tasks.
4. Identify the need to ventilate or purge the confined space if applicable. Natural ventilation may be suitable. (hopper gates and roof latches are fully opened; safety hazards have been controlled)
5. Conduct a tailboard meeting to discuss the plan and tasks to be completed in the confined space.
6. Ensure 2-way communication and person check systems are in place and working properly.
7. Complete entry permit with the following information for a confined space:
 - a. Name of person entering the space
 - b. Date and time of entry anticipated date and time of exit and the actual date and time of exit.
8. Fill out Entry Permit into a hazardous confined space:
9. Name of person entering the space
10. Date and time of entry anticipated date and time of exit and the actual date and time of exit.
11. Atmospheric testing is conducted prior to entry and continuously while in the confined space. Testing equipment must be calibrated and maintained in accordance with the manufacturer's instructions.
12. Ensure attendant is stationed outside confined space and near the entrance
13. Ensure the entrant has inspected and wearing a harness; Entrant is attached at all times while in the confined space (railcar) to above SRL through the open hatch.
14. Enter the confined space and complete the task.
15. Continuous monitoring of air contaminants if applicable.
16. Record monitoring results on entry permit.
17. Complete all tasks, sign off and close out the entry permit.

EMERGENCY PROCEDURES

1. If the entrant team member becomes **unresponsive** inside the confined space, notify Management immediately to call 911. This is the responsibility of the **on-site Supervisor/ Emergency Coordinator** in consultation with the first aid / C.P.R. attendant.

2. Call for additional team member support, assess the entrant's condition and, if possible, attempt to retrieve him by reaching in through the hopper gate opening.
3. Once the team member is out of the confined space, immediately begin First Aid/CPR.
4. Isolate the area to prevent unauthorized access and to eliminate other potential hazards.
5. Ensure a team member is positioned at Lincoln rd. to direct emergency services to location.
6. If the entrant team member becomes injured but conscious while in the confined space, the attendant shall assess the severity of injuries and mental state by asking questions.
7. Depending on injuries, the entrant may be able to self-rescue from the confined space, but if not, a first aider shall either enter the confined space to provide first aid or carefully retrieve the entrant through the hopper gate opening. Once the team member is out of the confined space, immediately begin First Aid/CPR.
8. If team member requires medical attention, a member of the Management team shall be notified immediately to call 911.
9. Under no circumstances should equipment, materials, etc. be moved or operated until the injured person is stabilized or unless it is necessary to prevent further injury.
10. If the Accident/Incident involves machinery or equipment, Entanglement/Entrapment; on site staff with appropriate expertise shall be made available without delay.

We also have a boom attachment for the forklift that could be utilized if a rescue is needed through the top of the rail car

Human Resources will notify the injured person's next of kin **only after**:

STATUS OF THE SITUATION IS KNOWN and, the injured person's condition is known and stable, or the injured person is in the care and custody of emergency services **and in transit to a medical facility.**

Definitions:

"Atmospheric hazards" means,

- (a) the accumulation of flammable, combustible or explosive agents,
- (b) an oxygen content in the atmosphere that is less than 19.5 per cent or more than 23 per cent by volume, or
- (c) the accumulation of atmospheric contaminants, including gases, vapours, fumes, dusts or mists, that could,
 - (i) result in acute health effects that pose an immediate threat to life, or
 - (ii) interfere with a person's ability to escape unaided from a confined space;

Confined space means a space that

- (a) is enclosed or partially enclosed;
- (b) is not designed or intended for continuous human occupancy; and
- (c) has a limited or restricted means of entry or exit or an internal configuration that could complicate provision of first aid, evacuation, rescue or other emergency response.

Hazardous confined space means a confined space that, when entered, occupied or exited by persons, presents hazards likely to cause injury, illness or other adverse health effects to persons entering, exiting or occupying it because of

- c) its design, construction, location or atmosphere;
- c) the materials or substances in it; or
- c) any other conditions relating to it
- c)

Combustibles are materials that can burn, meaning they can ignite and sustain a flame when exposed to a heat source.

Supporting Policies and Procedures

Hazard Assessment Program (ETR-MT-MPL-H&S-021)

Hazard Assessment Form (ETR-MT-MPL-H&S-052)

Vessel to Land Emergency Transfer Policy and Procedure (ETR-MT-H&S-029)

Incident Investigation Policy and Procedure (ETR-MT-MPL-H&S-036)

First Aid Policy and Procedure (ETR-MT-MPL-H&S-024)

ETR Emergency Plan Procedure (ETR-H&S-013)

POLICY REVIEW

This policy is to be reviewed annually and updated as necessary in conjunction with the WC to ensure compliance.

  	No.	ETR-MT-MPL-H&S-034
HEALTH AND SAFETY	Effective Date	28-July-2025
SAFE DRIVING POLICY and PROCEDURE	Revision	2025.1

POLICY STATEMENT

ETR is committed to complying with all standards based on the policies, procedures, processes, and manufacturer's specifications for the safe operation of company vehicles/equipment. The goal is to eliminate incidents and increase safety by promoting a safe driving culture on worksites.

SCOPE

This Policy applies to all employees, contractors, who regularly or occasionally may operate any ETR vehicle or equipment while performing tasks at any site for the company.

ROLES AND RESPONSIBILITIES

o Employers

- Ensure that all company vehicles are maintained as according to regulatory requirements and manufacturer's specifications.
- Ensure that all operators of company vehicles/equipment are properly licensed/certified, comply with applicable safety and traffic legislation, comply with company rules and policies, and demonstrate safe driving habits.
- Ensure that near misses and incidents are reported, documented, and investigated.
- Ensure that all operators conduct documented pre-use inspections.
- If applicable, ensure that an onsite traffic control plan is in place to avoid interactions with other vehicles, mobile equipment, and pedestrians.

o Supervisors/Managers

- Ensure that all company vehicles/equipment are maintained properly and in good safe condition.
- Ensure that documented pre-use inspections are conducted.
- Ensure the operator is certified to operate.
- Ensure all company vehicle operators are trained on the traffic control plan for the site, if applicable.
- Ensure all near misses or incidents are reported, documented, and reviewed.
- Investigate all incidents, determine cause, and recommend corrective actions to prevent reoccurrence.

o Operators

- Must be trained, qualified, licensed and authorized to operate the vehicle.
- All vehicles must be inspected before use. A walk around shall be completed to check for possible hazards. Report vehicle defects to a supervisor before use and document.
- Ensure that all required registration, permits, and insurance certificates are stored in the cab.
- Security of loads/emergency equipment must also be checked.
- Pedestrians have the right of way.
- Notify supervisor immediately if their driver's license has been suspended, cancelled, or limited in any way.
- Must be trained and aware of the Traffic Control Plan for the worksite, if applicable.
- Avoid/eliminate distracting behaviors while driving (e.g., texting, use of handheld cell phones/devices, eating, grooming, reading, playing with multi-media devices, etc.).
- Do not drive if physical or mental condition is adversely impacted or if weather or site conditions are hazardous.

GENERAL REQUIREMENTS

- All signs governing the movement and parking of vehicles on any worksite must be observed.

- Operators are to obey posted speed limits at all times. If unsure of posted speed limit, always take lower possible speed.
- Follow safe fueling practices (e.g., no smoking, check for leaks, don't overfill, do not leave nozzle unattended, no cell phone or PDA use).
- Ensure all applicable safety and emergency features/equipment are fully operational and available (e.g., back up alarm, seat belts, fire extinguisher, first aid kit, warning flares/triangles, flashlight, cold weather emergency supplies, etc.).
- Keep cab and floor of vehicle or motorized equipment free of materials, tools or other objects that could interfere with the operation of the controls, create hazards, or create a projectile hazard in the event of an accident. When objects must be carried in the cab, ensure objects are secured.
- Do Not back up when other reasonable and practicable options exist to avoid having to perform this potentially hazardous activity (e.g., where possible, plan dump or pickup locations to allow drive in/out option). Take measures to ensure back up, where required, is as safe as possible (e.g., use signalperson, do circle check, engage back up alarm, park such that the first move when leaving is forward).
- Ensure nothing obstructs the driver's vision or impairs driver's use of controls (e.g., Signs, Stickers, labels, logbooks, etc.).
- Encourage safe driving behaviour (e.g., regular breaks, management of work schedules to ensure adequate rest breaks as required by law, defensive driving, etc.).
- Assess surrounding area prior to start-up and movement to ensure movement is not a hazard to the operator, workers, or the public (i.e., circle check).
- Do not leave the controls of vehicles or motorized equipment unattended unless it is secured against unintentional movement.
- Do not leave vehicles/equipment idling when not in use.

YEARLY REVIEW

ETR in conjunction with JHSC/WC shall review this policy and procedure on an annual basis or more often if necessary.

	No.	ETR-H&S-034
HEALTH AND SAFETY	Effective Date	9-Feb-2026
HEARING CONSERVATION PROGRAM	Revision	2026.1

POLICY STATEMENT

ETR is committed to the health, safety and well-being of employees, contract employees that may be exposed to excessive levels of noise while performing tasks for the company. ETR shall ensure the required training, hearing protection, signage of noise hazard areas, annual hearing

test along with record keeping are all in compliance with all applicable local and federal regulations

SCOPE

This Policy applies to all employees required to wear hearing protection to perform their daily job tasks. The Engineers, Brakeman and Conductors, MOW (Maintenance of Way) team members are all required to wear hearing protection at all times while performing any job tasks. Car department employees shall wear hearing protection when performing specific tasks previously identified.

ROLES AND RESPONSIBILITIES

Employer shall:

- Ensure all workers are trained and comply with this program.
- Ensure all required equipment for tasks to be completed safely are provided.
- Schedule an initial audiometric test for all current identified employees and new hires.
- Schedule and allocate time for each identified employee to have an audiometric test completed after the first year and then we will follow the TC regulations.
- Provide hearing protection, training of proper fit and care of hearing protection.
- Create and install signage in all areas of concern such as on the locomotives, engine house and MOW vehicles.
- Conduct noise-exposure testing when equipment, tasks change.
- Cover all costs associated with this hearing conservation program.

Supervisors/Managers shall:

- Implement and train all employees on this program.
- Ensure hearing protection is provided and available in all areas that require protection.
- Encourage and enforce the use of hearing protection.
- Demonstrate proper fit techniques to ensure protection.

Workers shall:

- Comply with the requirements of this program.
- Participate in and complete all necessary training.
- Participate in annual hearing tests.
- Report any other noise level concerns to their supervisor that has not been previously identified.
- Wear all provided PPE required for the tasks (hearing protection)
- Maintain and care for all PPE

PROCEDURES/REQUIREMENTS

1. ETR Corporate Health and Safety Specialist conducted an assessment of possible excessive Noise levels in the workplace using a Niosh app on the phone in collaboration with members from the Workplace Committee.
 - a. The assessment was conducted in the cab of an engine (locomotive) in neutral and throttle position mid-way, the levels exceeded the 87dBA
 - b. ETR Corporate Health and Safety along with the workplace committee determined that further assessments of noise levels needed to be conducted, a third party was contracted to conduct this testing.
2. IES Consulting conducted testing on Dec 2/2025 and Dec 3/2025, results are in the report provided Dec 9/2025.
 - a. Report is available for review on the Health and Safety board as well discussed during the next workplace committee meeting.
 - b. Report results shall be communicated to all affected employees.
3. Engineers, Brakeman, Conductors and the MOW department are all required to wear the provided Honeywell Laser Lite earplugs with a Noise Reduction Rating of 32dBA.
4. All identified employees shall be scheduled for an audiometric test as an initial assessment and on an annual basis.
5. Record Keeping
 - i. Education and training to employees
 - ii. Results of noise exposure measurements (10 years)
 - iii. Annual hearing test results
 - iv. Completed Hearing Conservation Program Checklist

EDUCATION AND TRAINING

- Noise is any unwanted sound that doesn't happen in a natural environment. Noise can include sounds coming from machinery, highway traffic, and industrial, commercial and residential sources.
- Noise is caused by pressure changes in the air created by vibrations, which are transferred to the ear by sound waves. The sound waves are then converted to electrical signals by delicate hair cells called cilia, found in the inner ear, or cochlea. These signals are transmitted to the brain and interpreted as sound.
- Exposure to loud noise breaks down the cilia and large groups of the cells often get torn away. When the cilia become damaged, they do not grow back and this can cause **permanent hearing loss**.
- You can prevent noise-induced hearing loss by eliminating or reducing hazardous noise exposure in your workplace.

Why we use hearing protection

Noise induced hearing loss (NIHL) is one of the most common work-related illnesses in Canada. Hazardous workplaces that can cause NIHL are not always obvious. Sometimes infrequent but loud impact noises that occur sporadically can-do damage to hearing.

Other adverse health effects of noise exposure include **temporary threshold shift (TTS)** and **tinnitus**. TTS is when noise exposure results in a temporary hearing loss that recovers after rest. A worker might have to turn up the car radio volume at the end of the work day, but will

turn it back down the next morning. Repeated TTS can lead to a **permanent threshold shift** (PTS), or NIHL. Tinnitus is ringing or buzzing in the ears. Unfortunately, there is no official cure for NIHL. The best treatment is often hearing aids. There is no drug or medication that works for NIHL.

How does noise affect my hearing?

A person with NIHL may struggle to hear speech sounds such as “sh”, “s”, “th” and “f”. It is most noticeable at the start and end of a word; “shell”, “sell” and “fell” may be difficult to distinguish. This makes speech sound more mumbled and less crisp or clear than it should.

When should hearing protection be used?

Hearing protection shall be used where ever the hazards of excessive noise exposure has been identified and communicated to the teams.

Who is responsible to take care of the hearing protection?

The employee is responsible for the fit, care and maintenance of their PPE.

POLICY REVIEW

This policy is to be reviewed annually and updated as necessary in conjunction with the Workplace Committee to ensure compliance.

The legislative requirements

Under the *Regulations*, your employer must maintain your noise exposure level at a level not exceeding 87 dBA, either by using engineering devices to reduce the noise or by shortening the duration of exposure. If, in spite of these efforts, your noise exposure level could exceed 87 dBA, your employer must submit a report to Human Resources Development Canada - Labour Program, with a copy to the work place health and safety committee or representative, and provide you with adequate hearing protectors.



THE FIVE **LIFE SAVERS**

- 1. Secure equipment before action is taken.**
- 2. Protect employees against moving equipment.**
- 3. Discuss safety at the beginning of a job or when a project changes.**
- 4. Communicate before action is taken.**
- 5. Mentor less experienced employees to perform service safely.**



Shortcuts Cut Lives Short!